

Blais v. The Toronto Area Transit Operating Authority,
commonly referred to as The Toronto Transit Commission

[Indexed as: Blais v. Toronto Area Transit Operating
Authority]

105 O.R. (3d) 575

2011 ONSC 1880

Ontario Superior Court of Justice,
J.W. Quinn J.
March 28, 2011

Civil procedure -- Discovery -- Undertakings -- Opposing
counsel not required to respond to written follow-up questions
flowing from information provided in fulfillment of
undertakings given on examination for discovery.

Civil procedure -- Evidence -- Spoliation -- Plaintiff suing
transit authority in 1998 for damages resulting from slip and
fall -- Defendant destroying some records as part of its normal
purging practices -- That purging amounting to spoliation of
evidence -- Spoliation not fatal to plaintiff's case -- Issue
of spoliation was matter for trial judge to consider
-- Plaintiff's motion to strike statement of defence dismissed.
[page576]

The plaintiff commenced an action for damages arising out of
a slip and fall on the defendant's property in 1998. By 2010,
the parties had not completed examinations for discovery. Some
records created around the time of the incident had been
destroyed by the defendant as part of its normal purging
practices. The plaintiff brought a motion to compel the

defendant's representative to answer questions refused on his examination for discovery and to have the defendant comply with undertakings. The plaintiff also sought an order striking out the statement of defence.

Held, the motion should be granted in part.

Some of the refusals were improper; those questions should be answered. All of the undertakings given on the examination for discovery had been fulfilled. The plaintiff was seeking answers to collateral written questions raised in response to fulfilled undertakings. Opposing counsel is not required to respond to written follow-up questions that flow from information provided in fulfillment of undertakings given on an examination for discovery. There had been spoliation of evidence by the defendant through the intentional purging of documents. However, there was no evidence that the spoliation was a deliberate act done with the intention of gaining an advantage in the litigation. The spoliation was not fatal to the plaintiff's case. In the circumstances, the issue of spoliation should be dealt with by the trial judge.

The plaintiff had not advanced any ground that would even remotely warrant an order striking out the statement of defence. The agitation expressed in respect of the purged documents was premature; the refusals were neither numerous nor obstructionist; all undertakings had been fulfilled; there was no legal obligation to answer the many written questions posed by counsel for the plaintiff; and the defendant did not cause the delay in this case. The delay was entirely the fault of the plaintiff. Moreover, the notice of motion made serious, unfounded allegations of intentional wrongdoing by counsel for the defendant. A costs hearing should be held to determine the applicability of rule 57.07(1) of the Rules of Civil Procedure, R.R.O. 1990, Reg. 194.

Cases referred to

Cheung (Litigation Guardian of) v. Toyota Canada Inc., [2003] O.J. No. 411, 29 C.P.C. (5th) 267, 120 A.C.W.S. (3d) 238, 2003 CarswellOnt 481 (S.C.J.); McDougall v. Black & Decker Canada Inc., [2008] A.J. No. 1182, 2008 ABCA 353, 62 C.P.C. (6th) 293, 440 A.R. 253, 97 Alta. L.R. (4th) 199, [2009] 1

W.W.R. 257, 2008 CarswellAlta 1686, 61 C.C.L.T. (3d) 96, 302 D.L.R. (4th) 661, 171 A.C.W.S. (3d) 821; Muskoka Fuels v. Hassan Steel Fabricators Ltd., [2009] O.J. No. 4782, 2009 CarswellOnt 7008 (S.C.J.), consd

Other cases referred to

Araujo v. Jews for Jesus, 2010 CarswellOnt 8408 (Master); Bergmann v. Amis Estate, [2011] O.J. No. 556, 2011 ONSC 905, 2011 CarswellOnt 772; S.E. Lyons and Son Ltd. v. Nawoc Holdings Ltd. (1978), 20 O.R. (2d) 234, [1978] O.J. No. 2724, 7 C.P.C. 10 (H.C.J.); Senechal v. Muskoka (Municipality), [2005] O.J. No. 1406, 138 A.C.W.S. (3d) 639 (S.C.J.); Spasic Estate v. Imperial Tobacco Ltd. (2000), 49 O.R. (3d) 699, [2000] O.J. No. 2690, 188 D.L.R. (4th) 577, 135 O.A.C. 126, 2 C.C.L.T. (3d) 43, 47 C.P.C. (4th) 12, 2000 CarswellOnt 2522, 98 A.C.W.S. (3d) 558 (C.A.); Tanner v. McIlveen Estate, [2009] O.J. No. 1648, 176 A.C.W.S. (3d) 975, 2009 CarswellOnt 2116 (S.C.J.)

Rules and regulations referred to

Rules of Civil Procedure, R.R.O. 1990, Reg. 194, rules 26.02(a), 29.2, 29.2.02, 29.2.03, (1), 30.02(1), 30.03(2)(c), 30.06, (b), 30.07, 30.08(2), (b), 31.03(1), (2), 31.04(3), 31.06, (1), (b), (2), 31.09(1), 34, 34.08, 34.15(1), (b), 48, 57.07(1), 59.04(12) [page577]

MOTION to compel answers to questions refused on examination for discovery and for other remedies.

Roelf A.M. Swart, for plaintiff (moving party).

Norma Priday, for defendant (responding party).

J.W. QUINN J.: --

I Introduction

[1] Some actions proceed more slowly than others.

[2] Here, the lawyers for the plaintiff have prosecuted this action with the enthusiasm of invitees at a tax audit. A

straightforward slip-and-fall injury in 1997, where the statement of claim was issued in 1998, finds the parties, by 2010, still trapped in examinations for discovery. How can this happen? How can this possibly happen? How? It will be seen that, among other things, the plaintiff elected trial by letter.

[3] Although the procedural route taken by the plaintiff is uniquely and unnecessarily convoluted, what I have in front of me, essentially, is a motion to compel the defendant to fulfill undertakings and to re-attend to be examined for discovery on questions to which answers were refused.

[4] In addition to questions relating to (1) the refusals and (2) the unfulfilled undertakings, the motion raises other issues: (3) the nature of the follow-up questions that the plaintiff has put in writing to the representative of the defendant who was orally examined for discovery and the availability of a further oral discovery; (4) the purging of records by the defendant; (5) whether the statement of defence should be struck; (6) an amendment to the statement claim; (7) whether the defendant should be required to serve a further and better affidavit of documents; and (8) costs, particularly, the unpleasant applicability of subrule 57.07(1) of the Rules of Civil Procedure, R.R.O. 1990, Reg. 194.

[5] The motion reveals fundamental misunderstandings by the plaintiff's lawyers regarding the discovery process.

II Background

[6] The full background of this motion is a story too long to tell. (Typically, it consists of a flurry of correspondence, some feeble attempts at progress and lengthy periods of hibernation, followed by repetitions of that cycle.) Nevertheless, I have set out the history in detail. I did this for two reasons: firstly, costs (and, as I have said, perhaps subrule 57.07(1)) will be a significant issue and understanding the background will be helpful in that regard; secondly, I was curious to see how two lawyers managed to be on a [page578] file for more than a decade and still be dithering with discoveries. Was fault capable of being assigned to one side? [See Note 1

below]

Date: Event

1997

Oct. 14: The plaintiff slipped on a puddle of oil and fell, at approximately 7:30 a.m., on the premises of the Toronto Transit Commission ("TTC"), in downtown Toronto. [See Note 2 below] The plaintiff reported the incident to employees of the defendant. The Incident Report reads:

[The plaintiff] approached the ticket counter to complain of slipping on a patch of oil at the back of platform #13 falling on her knee. She was asked by clerk Skrepnek if she was hurt and needed medical attention. She said no. Area was checked by clerk Skrepnek and Supervisor F. Zaccak and found to be slippery. Small patch of motor coach oil was cleaned and secured by the janitor on duty using speed dry absorbents.

An Occurrence Report, signed, but not prepared, by Cesare Dambrosio, states:

I was the janitor on duty on day shift (7 a.m. start) on above date . . . When the Terminal Supervisor asked me I put "speed dry" on some oil to absorb it. I did not see anyone fall on the oil.

Nov. 5: Wendell Pilgrim, an in-house claims adjuster for the TTC, interviewed the plaintiff. Mr. Pilgrim, after describing the plaintiff as "pleasant, polite and cooperative", summarized the interview as follows:

[The plaintiff] states she had just exited bus after 11 hour trip from Kirkland Lake. She had been asleep and somewhat tired. Carrying three bags and a pillow after alighting from bus. Walked into pool of oil, slipped and fell landing on left knee. Spoiled pants and pillow case. [page579]

The interview was recorded. The tape, along with a transcription, was provided to the lawyers for the plaintiff. I will set out some passages.

After describing that she had disembarked onto the sidewalk outside the bus station (and not in a bus bay) and had chosen to walk across the bus station floor (a short cut, as opposed to using the pedestrian walkway) to wait for her next bus, the plaintiff said:

I walked across the street with Tina and we walked under the shelter where the buses parked and I -- I had a lot of bags so I couldn't see the ground, cause they were all around me and I had just woken up so I was kind of sleepy and I didn't -- there was a puddle of oil, a large one -- and I didn't see it. I stepped in it.

The plaintiff stated that she used the bus station fairly frequently and she referred to the area where the oil was located as "clean and tidy, with no foreign objects". She did not have a problem with the lighting. She was looking straight ahead towards the terminal and not at the ground.

She advised that, after she slipped, she decided to tell someone:

I went inside the terminal. I sat down and I was quite upset. I thought of going to report it and then I decided not to. And then I went outside for a cigarette and I saw two bus drivers talking. I decided I should tell someone because it should be cleaned up. Because, I mean, I am young, I can heal, but if some little old lady got off and fell and broke her hip, that could be it. So I went and told them and they addressed me inside to where they sell tickets . . . I was in quite a bit of pain. It got worse in the next two days. I could barely walk. Even my clothing touching my knee was unbelievably painful but it's gotten better since. It's not 100% but the doctor said that time is the only thing that is going to heal it.

Nov. 25: Mr. Pilgrim wrote to the plaintiff, enclosing a blank medical report form. She was asked to have her doctor complete and return the form and to "submit receipts for any and all expenses you may have incurred as a result of this incident".

1998

Mar. 27: William F. Elkin ("Elkin"), lead lawyer for the plaintiff, [See Note 3 below] sent written notice to the TTC of the incident and of the fact that he would be "processing a claim . . . for damages".

Apr. 8: The statement of claim was issued.

Jun. 18: The statement of claim was amended pursuant to rule 26.02(a) of the Rules of Civil Procedure.

July 2: The amended statement of claim was served.

July 9: Wendell Pilgrim [See Note 4 below] wrote to Elkin confirming an agreement to waive the delivery of a statement of defence "at this time".

1999

From the evidence filed, there was no meaningful movement in the case evident for this year.

2000

May 19: A statement of defence was served. I am unaware why the defendant required, or was permitted, two years within which to deliver a statement of defence. [See Note 5 below]

Jun. 8: A legal assistant for Franceen Rogovein ("Rogovein"), the in-house lawyer for the TTC, telephoned Elkin's office to arrange examinations for [page581] discovery and was told that Elkin was unavailable until November 9, 2000. [See Note 6 below] That date was set aside, with the location yet to be determined. Nothing happened for almost five months.

Oct. 20: Rogovein's legal assistant again telephoned Elkin's office and left a message that Rogovein wished to formalize a date and time for examinations for discovery.

Oct. 23: Elkin's legal assistant returned the telephone call of October A0 and said that November 9 was no longer

available. Discoveries were scheduled for February 13, 2001, at Hamilton, a mutually agreeable date and location.

Oct. 25: Rogovein served (1) the sworn affidavit of documents of the defendant; and (2) a Notice of Examination for February 13, 2001, thereby entitling her to be the first to examine for discovery.

2001

Feb. 7: Elkin wrote to Rogovein and advised that he was "having some difficulty in locating [the plaintiff] to attend at the . . . discovery scheduled for . . . February 13th in Hamilton". Nevertheless, with his letter he enclosed a Notice of Examination for the discovery of an unnamed representative of the defendant on that date.

Feb. 7: Rogovein responded by e-mail. She justifiably declined to produce anyone for discovery, as the plaintiff had not yet served an affidavit of documents and the defendant desired to conduct the first examination as was its right under rule 31.04(3) of the Rules of Civil Procedure. [See Note 7 below] [page582]

Feb. 9: In a telephone call, Elkin said that he would not be producing his client on February 13. [See Note 8 below] Priday confirmed with Elkin that she would not be producing a witness on February 13. [See Note 9 below] She telephoned the examiner's office and changed the booking from a full day to two hours (the examiner's minimum).

Feb. 13: The plaintiff did not attend her examination for discovery. Priday obtained a certificate of non-attendance.

Mar. 2: Having not heard anything from Elkin, Rogovein again corresponded with his office to arrange a date for discoveries. She advised Elkin that she had secured a certificate of non-attendance and then wrote:

I want to examine your client for discovery and I am entitled to do so. Please contact my office for a convenient date for you and your client, preferably not before May

2001. If required, I am prepared to travel again to Hamilton to conduct the examination for discovery; if this is not agreeable, I am prepared to make arrangements to conduct an examination for discovery where the plaintiff resides.

Six weeks passed without a response. A reminder was sent. No response was received.

Apr. 26: Rogovein served a Notice of Examination to examine the plaintiff for discovery. Rogovein unilaterally chose the date (July 17) and the location (Hamilton), understandably, having not received a response from Elkin. (The City of Hamilton does not have any connection to the action, but it is the geographic mid-point for counsel.)

Jun. 29: Two months later, Elkin wrote to Rogovein stating that the examinations for discovery "have been arranged, by your office, July 17, 2001 at 10 a.m. in Hamilton . . . this date was not agreed upon by my office". [See Note 10 below]

The letter advised that the plaintiff wished to [page583] examine "the manager or assistant manager who was employed with the TTC on the date of the accident . . ." and pointed out that, "with respect to your affidavit of documents, it seems to me that there are numerous documents missing". The letter went on to enumerate those documents. [See Note 11 below]

Jun. 29: Rogovein replied by facsimile transmission:

You [have] advised me, yet again, that the date I have selected for examination for discovery was not agreed upon by your office. Your office telephoned me some time ago to point this out to me. I would suggest you review correspondence sent on this file, and in particular my letter of March 2, 2001. As you have failed to respond to that letter, I sent a further letter on April 26, 2001 selecting a date for examinations for discovery.

I might further point out that:

1) . . .

2) I have obtained a sworn affidavit of documents and you have not;

3) I obtained a certificate of non-attendance when your client failed to produce herself to be examined for discovery on February 13, 2001 in Hamilton.

Given the above, my sense is that I am not obligated to select a "mutually convenient date" for conducting examinations for discovery . . . [and the defendant's] affidavit of documents has listed all of the documentation in my file and in the appropriate schedules. If you disagree, it is available to you to bring a motion for the production of a further and better affidavit of documents . . . [See Note 12 below]

The letter concluded:

I trust your client will be available on July 17, 2001 to be examined for discovery. I trust that at that time you will provide me with her sworn affidavit of documents.

Jul. 12: Five days before the scheduled discoveries, Elkin wrote to Priday demanding that the plaintiff be examined in North Bay and finally naming the witness he wished to examine, being Frank Zaccak ("Zaccak"), who was the supervisor on duty in the [page584] bus terminal on October 14, 1997 (and who is referred to in the Incident Report of that date).

Elkin served the affidavit of documents of the plaintiff and a Notice of Examination for Zaccak to be examined, on July 17, 2001, in Toronto (where he resides) as a representative of the defendant. The covering letter advised that the defendant's Notice of Examination was defective, as the plaintiff had not consented to being examined in Hamilton. [See Note 13 below] The Hamilton discovery was cancelled for that reason. The Toronto discovery was cancelled because Priday had the right to be the first to examine.

July 17: This was the cancelled return date of the Notices of Examination served by Rogovein and by Elkin. Three months passed.

Oct. 16: Rogovein wrote to Elkin in an effort to arrange examinations for discovery.

Nov. 13: Rogovein again wrote to Elkin in an effort to arrange examinations for discovery. [See Note 14 below]

Dec. 13: Rogovein once more sent a letter to Elkin in an effort to arrange examinations for discovery. Throughout this period, Elkin continued to insist that he be permitted to examine a representative of the defendant before Priday examined the plaintiff. He refused to recognize the right of Priday to examine first (a fundamental misconception of the discovery process) until the order of Sheppard J. was made on February 16, 2006. [See Note 15 below] [page585]

2002

Jan. 23: Elkin served a Notice of Examination for Zaccak to be examined for discovery in Toronto on April 23. [See Note 16 below]

Mar. 5: Rogovein advised that she and Zaccak would not be attending on April 23, as she wanted to first conduct a discovery of the plaintiff. [See Note 17 below]

Apr. 23: Elkin obtained a certificate of non-attendance. Another three months passed.

June 7: Rogovein again wrote to Elkin, trying to arrange examinations for discovery.

Jul. 31: Rogovein sent a letter to Elkin, saying:

I have not received a response to my letter of June 7, 2002, a copy of which I enclose herewith for your ease of reference.

Rogovein advised that a motion would be brought to dismiss the

action "should we not be able to arrange, within the next 30 days, examinations for discovery". Nothing happened for ten months.

Autumn: Rogovein left her employment with the TTC and, a few months later, was replaced by Norma Priday ("Priday"), who assumed carriage of the file and continues in that role. [See Note 18 below]

2003

May 28: Despite Rogovein having prepared draft motion materials, Priday chose not to proceed in an adversarial fashion and wrote to Elkin:

It seems quite clear to me that [we] served the first Notice of Examination and that the rule is clear that this gives the TTC first right to examine . . . it was served for a location mutually agreed upon by counsel. You subsequently asserted a right to have your client examined where she resides and [we] agreed. None of that makes the initial notice deficient. [page586]

I would ask that you call my assistant . . . to arrange a date for discovery at which time you can advise where your client now resides. We will then produce our representative in Toronto, where the defendant is located. I am aware that you have asked to examine Mr. Zaccak. Mr. Zaccak is retired and was not, to my knowledge, a TTC employee. He worked for Toronto Coach Terminal Inc. which is not a defendant.

Priday requested a full OHIP summary (and offered to pay for same) and enclosed copies of the Occurrence Report and the Incident Report which had been improperly listed in Schedule "B" to the affidavit of documents of the defendant. [See Note 19 below]

She also said that if she did not hear from Elkin within ten days "to arrange discovery . . . we will move to have the action dismissed".

By this point, Priday argues that the defendant had produced

"100% of the non-privileged documents relating to this matter which were in the possession of the TTC (or TTCT)".

Aug. 8: Priday forwarded to Elkin certain documentation that the latter had requested. She wrote:

When you have had a chance to review it, please give me a call. I am prepared to agree to a dismissal without costs at this time, but otherwise will need to examine your client in the near future.

Dec. 11: Priday sent a letter to Elkin advising that she required an examination for discovery of the plaintiff. [See Note 20 below]

2004

Mar. 8: Priday wrote to Elkin, confirming an earlier telephone conversation to the effect that "all parties" would be examined for discovery in Hamilton on November 19. Priday served a Notice of Examination. [page587]

Mar. 8: Elkin sent a letter to Priday confirming "the examination of all parties" in Hamilton on November 19 "for the entire day". [See Note 21 below] Elkin served a Notice of Examination, naming Zaccak as the representative of the defendant to be examined. [See Note 22 below]

Nov. 12: Priday sent a letter to Elkin telling him that the defendant had undergone

many changes since this incident occurred in 1997 and we have no one to testify to give evidence regarding this incident. The janitor, I have just recently been informed is deaf and the supervisor [Zaccak] has retired.

Priday asked:

Would you be willing to conduct examination of my client through written questions?

Nov. 17: Priday told Elkin:

If your client prefers me to come to St. Catharines, I will do so, but I cannot produce Mr. Zaccak. He is retired and he is no longer a representative of the entity you have sued. That is why I am suggesting written interrogatories -- I would be happy to see if he will co-operate in answering fact questions, but I cannot produce him as a representative.

I very much doubt that the deaf janitor would be of any assistance whatsoever to you, with or without an interpreter.

I could produce someone who is new to the organization but that person will not have been associated with the company as it was when this happened and will know nothing about this incident. You will end up with a series of undertakings which will put you in the same position as if there had been written interrogatories.

I am unable to produce anyone this Friday. However, I will happily examine your client in your city to make it easier to you. This is really the best compromise I can offer at this point other than rescheduling.

It appears that both sides subsequently agreed that a representative of the defendant would not be produced on November 19.

Nov. 19: This was the date that had been scheduled for examinations for discovery at Hamilton. As Elkin [page588] declined to travel to Hamilton, Priday agreed to come to St. Catharines to examine the plaintiff. Elkin was not present and had sent another lawyer, David Black ("Black"), as agent. Black refused to allow Priday to examine the plaintiff on the issue of liability and advised that the plaintiff was being produced strictly for the purpose of examination on damages. [See Note 23 below] Priday, who had no forewarning of this bifurcation, understandably objected vigorously. Calls were made to Elkin, who maintained his position. [See Note 24 below] As a result, the examination of the plaintiff did not

proceed.

Had Elkin made his position known in a timely manner, Priday could have brought a motion to compel the attendance of the plaintiff to be examined on all issues. There was no reason in law or logic for the discovery of the plaintiff to be bifurcated between liability and damages.

Nov. 19: Elkin served a further Notice of Examination, naming Cesare Dambrosio (the deaf janitor) as the representative of the defendant to be examined for discovery, returnable on December 3 at Toronto. [See Note 25 below]

Nov. 22: Priday wrote to Elkin, saying that the defendant has been incorrectly named; she will not produce the janitor; and she will investigate whether he is capable of communicating in English or using sign language. The letter reads, in part:

I am in receipt of a notice from your office to examine [the janitor] as a representative of the Toronto Area Transit Operating Authority. [The janitor] is not and never has been a representative or employee of the Toronto Area Transit Operating Authority. As I have explained to you and your associate, Mr. Black, the Toronto Area Transit Operating Authority operates Go Transit which has no legal association of any kind with the Toronto Transit Commission. The Toronto Coach Terminal [where the slip [page589] and fall occurred] is operated by the Toronto Transit Commission . . .

If you travel to Toronto on December 3, 2004, you will obtain a certificate which will be of no use to you since it cannot be offered to show lack of attendance of a representative of the defendant . . .

You must amend your pleading to name the correct defendant before any Notice of Examination from your office would have any legal effect. [See Note 26 below]

. . . You caused me to lose a full day in my office on November 19, 2004 by your insistence that I limit my discovery of your client to the issue of damages only. You

never once indicated to me you intended to take that position until after I arrived in St. Catharines . . .

I propose the following:

- 1) You amend your pleading to name the proper defendant.
- 2) I will investigate whether or not [the janitor] is capable of communicating in English or in sign language.
- 3) If he is capable, I will produce him on a day agreeable to us both in Toronto.
- 4) You will produce your client on the same day in Toronto.
- 5) You will agree to pay, forthwith, \$500 in costs thrown away for my attendance in St. Catharines on . . . November 19, 2004 . . .

Dec. 3: Elkin obtained a certificate of non-attendance. [See Note 27 below] Nothing of significance happened for another 12 months. [See Note 28 below]

2005

Nov. 22: Priday served a motion record on Elkin, seeking to have the action dismissed for delay, on the grounds that (1) "the plaintiff has repeatedly refused to be examined for discovery despite proper service. [page590] When the plaintiff was finally produced in November of 2004, seven years after the alleged slip and fall, she refused any examination concerning liability and demanded bifurcated discovery with examination on the issue of damages only"; and (2) the defendant was prejudiced because it had been more than seven years since the incident and "OHIP only kept records for seven years".

The motion was returnable February 16, 2006, at St. Catharines. It represented the first substantive step by either side to end the discovery stalemate. Thus, more than seven years after the action was commenced, there had been no discoveries and documentary disclosure from the plaintiff was

incomplete. [See Note 29 below]

2006

Feb. 9: In response to the motion served by Priday on November 22, 2005, Elkin served a motion record, also returnable for February 16. It was styled as a cross-motion [See Note 30 below] and sought an order compelling the defendant to produce Cesare Dambrosio (the deaf janitor) as a representative of the defendant to be examined for discovery, as "he had knowledge, information and belief about the incident in question". [See Note 31 below] Costs were sought in respect of the aborted bifurcated discovery, on the grounds that the defendant ought to have consented to same. [See Note 32 below] [page591]

Feb. 13: Priday served a further and better affidavit of documents.

Feb. 16: The motions of the parties were returnable before Sheppard J. In her submissions to the court, Priday argued against the suitability of the janitor as the representative of the defendant to be examined for discovery:

He's deaf. And he -- he has no knowledge of this incident . . . I can assure Your Honour that he is 100% deaf . . . He hears nothing. He speaks a bit of sign language. His parents spoke Italian. He reads a bit of lips and he's a lovely man who would be stressed beyond belief and would not understand what on earth was going on if he was required to attend for discovery, and frankly I have no idea how we'd get a usable transcript out of that . . . [See Note 33 below]

The endorsement of Sheppard J. reads, in part:

This matter involves a motion and cross-motion. The action is a "slip and fall" case. An unacceptable delay has occurred here and what costs consequences should follow will be considered later. In order to get the action moving, the court orders:

1. There will be examinations for discovery of both parties to be held in Hamilton on March 13, 2006

commencing at 10:00 a.m. and continuing each day until completed. No adjournments shall be allowed. The defendant having served the notice first will examine first. The question of both liability and damages will be covered in both examinations. No bifurcation. [See Note 34 below]

2. The plaintiff shall be entitled to discover and the defendant shall produce Cesare Dambrosio. Mr. Dambrosio speaks Italian and is deaf. Consequently under R. 34.08 the defendant will provide at its expense an interpreter fluent in Italian and sign language but not lip reading. Counsel for the defendant urged the plaintiff to accept another person on behalf of the TTC for discovery but counsel for the plaintiff insisted on Mr. Dambrosio. Should the plaintiff's discovery of Mr. Dambrosio prove unsatisfactory then counsel has been put on notice that it may be very difficult for him to seek leave of the court for a second discovery. [See Note 35 below] [page592]

Undertakings to be completed before the return of the motion and not later than 60 days of completion of discovery.

The motion and cross-motion are adjourned. To be returned before me after the discoveries are completed on notice to the [trial coordinator] in St. Catharines.

To this point, the plaintiff still had not provided an OHIP summary covering the year of the incident or the years before. [See Note 36 below]

Feb. 16: Elkin served a Notice of Examination for the discovery of the defendant, naming the janitor, returnable March 14 at Toronto.

Feb. 21: Priday committed a breathtaking faux pas by writing directly to Sheppard J. (without any forewarning to Elkin) [See Note 37 below] by facsimile transmission. I will set out some passages from the letter:

I am most grateful for the patience you showed in hearing the motion in this matter on February 16, 2006. You may recall that opposing counsel and I agreed on a date of March 13th for the examinations to begin, to proceed one after the other and to continue until finished.

I have only today been told that Mr. Cesare Dambrosio, the deaf janitor, is to be in Punta Cana, Mexico (sic) with his wife and his parents on that date. (The letter goes into detail about the reason for, and timing of, the trip.)

. . . As I anticipated, the need to be examined is causing Cesare considerable stress and it is unfortunate it will hang over his head during the holiday . . .

May I ask you to vary your order to allow Mr. Elkin and me to arrange an alternate date in March for these examinations to take place? I would be entirely grateful as would the Dambrosio family. I have not approached Mr. Elkin directly, although I have no reason to think he would not be understanding because time is very short before Cesare leaves . . . Again, thank you for spending the time with us which you did.

It is truly remarkable that any counsel would, unsolicited, write to a judge in this fashion. Nevertheless, Sheppard J. made an endorsement on the [page593] letter without affording Elkin the opportunity to be heard. The endorsement reads, in part: "Request approved -- but discoveries are to be completed ASAP and preferably before the end of March . . ."

Feb. 24: Elkin wrote to Priday, legitimately describing the letter to Sheppard J. and its tone as disturbing.

Mar. 13: This was the discovery date set by Sheppard J. (and subsequently changed to March 27, 2006).

Mar. 27: The janitor was examined for discovery at Hamilton, using an interpreter of "American sign language". Swart submits that Priday misled Sheppard J. on February 16 when she argued against the janitor as a suitable representative of the

defendant to be examined for discovery. However, the following passages from the discovery show that Priday largely was accurate in her characterization of the communication and hearing abilities of the janitor; it would be quibbling to conclude otherwise:

A. I've got general English skills, I guess, but my mode of communication is through sign language. That is my main used language.

.

Q.68 . . . you're wearing hearing aids?

A. Yes.

Q.69 Can you hear?

A. Yes I can.

Q.70 To what extent can you hear?

A. I wear it -- specifically I can hear people in my family. I can also hear -- I also use my hearing aids when I'm driving just so that I can hear sirens, things like that

. . .

.

Q.73 Okay. And so when somebody talks to you at work you can hear them?

A. No.

.

Q.77 So the hearing aids assist you to hear traffic noises like horns? [page594]

A. Horn, I won't be able to hear. If there's a siren, a very loud, loud siren going by, then I can hear that . . .

.

Q.83 . . . I assume that you cannot speak at all? You sign

only?

A. I will use my voice with my family members, but nobody else . . . not even relatives like cousins or hearing people that I meet. They won't understand what I'm saying at all.

.

A. . . . what I'm using in my family, it's just basic speech . . .

.

Q.221 Okay. How far did you go in school?

A. High school graduate.

.

Q.225 Okay. Okay. Okay. And is that a school for the deaf or is that a regular high school?

A. Regular high school.

.

A. There was a deaf satellite class in the regular high school . . . Some classes we took as a deaf class and other times we were integrated . . .

.

A. Actually, all the classes were interpreted.

Q.231 Okay. With somebody who signed American sign language?

A. That's right.

In the course of the discovery, Priday made references to documents having been purged by the defendant:

Q.135 MR. ELKIN: Counsel would you get all of the records with respect to [the janitor's] employment and where he was stationed from the time he joined the TTC five months before this incident, up to the day of the incident?

MS. PRIDAY: I would, except they don't exist anymore.

MR. ELKIN: Why not?

MS. PRIDAY: They're not kept. They're purged. [page595]

MR. ELKIN: Why would they not be kept if there's a lawsuit?

MS. PRIDAY: For heaven's sake, there wasn't a lawsuit in the beginning and full employment records and personnel files are not -- working schedules are not kept like that. If they exist, I'll get them for you. The chances are absolutely remote.

.

Q.138 I asked you for all inspections and sweep records, the names of all of the people who worked --

MS. PRIDAY: We don't have anything . . . They've been purged. They're routinely purged.

.

Q.270 . . . Could you please check and see if there are any Incident Reports or Occurrence Reports before the actual incident at 7:00 a.m. approximately on October 14, 1997?

MS. PRIDAY: There wouldn't be. They'd be long since purged.

MR. ELKIN: . . . if you could check with the TTC and if you advise me that the records have been purged, that's fine.

MS. PRIDAY: I'll check . . . But I do know the timetable for these sorts of complaints and I think that it's about a six-month window.

MR. ELKIN: And that would apply to the log books . . . ?

MS. PRIDAY: They'd be long gone, too.

MR. ELKIN: They're long purged, too?

MS. PRIDAY: Yeah.

Thereafter, the issue of purged documents obsessed Elkin, but the only action that he took was to write letters to Priday for the next three years.

Mar. 27: The plaintiff also was examined for discovery at Hamilton.

Mar. 29: Elkin forwarded to Priday a list of undertakings given on behalf of the defendant on March 27.

Apr. 10: Priday wrote to Elkin, responding to some of the undertakings given in the course of the examination for discovery of the janitor.

Apr. 19: Priday wrote to Elkin, providing responses to more of the undertakings.

Apr. 20: Priday again wrote to Elkin with additional responses to undertakings. [page596]

May 4: Priday received a copy of the transcript of the janitor's examination for discovery that she had ordered on an expedited basis.

May 8: Priday provided further information in respect of undertakings. She maintains that the undertakings of the defendant were fulfilled by this date.

May 24: Elkin responded to the above correspondence:

. . . it appears that you have not fulfilled a number of the undertakings given on behalf of your client. You have indicated to me that you have no records because they have been purged and destroyed, and yet it turns out that you indeed do have certain records which you have provided to our office in fulfillment of the undertakings . . .

I cannot understand why we are receiving some answers to the

undertakings given . . . if the relevant information and documentation has been apparently purged and destroyed as you indicated to us at the discoveries . . .

Jun. 14: Priday sent a letter to Elkin outlining what she regarded as the outstanding undertakings given by the plaintiff.

Jun. 19: Elkin wrote to Priday requesting certain information and documentation.

Jul. 10: Elkin forwarded a five-page letter to Priday, suggesting that the undertakings of the defendant had not been fulfilled. Elkin advised that of the 22 undertakings he had noted, only one was fulfilled to his satisfaction.

Elkin raised numerous new questions. [See Note 38 below]

Jul. 31: In a four-page letter, Priday replied to Elkin. She concluded:

I maintain our undertakings are fulfilled. The judge issued an express warning that you were unlikely to be [page597] satisfied with the evidence of the witness you demanded but that the consequences of that were to rest with you. You cannot now go through the transcript and pose new questions for new witnesses, particularly collateral questions which appear designed to determine if we are being truthful or diligent.

Let us get this case moving on to trial or I will simply bring my motion back on.

The case then slipped into sleep mode for five months. [See Note 39 below]

2007

Jan. 19: Priday sent a three-page letter to Elkin advising that she would be returning her 2006 motion to dismiss and stating, "our undertakings are complete and long since have been". She added:

We continue not to have responses to the [four] undertakings set out below. It is now ten years since your client's slip and fall and to date I still have no OHIP summary although you wrote me months ago to say you had obtained one back in 1995. My request for it was met with no response. This action is now further delayed since I have been unable to review it and determine from it what records we might want . . .

I have asked my assistant to contact the trial coordinator in St. Catharines to arrange a date for the return of the motion . . .

You have an ongoing obligation to provide up to date medical records. We have not received those.

Jan. 20: Priday made inquiries and learned that Elkin had not ordered the transcript of the plaintiff's examination for discovery, held 11 months earlier. Priday ordered the transcript.

Feb. 16: Priday advised that she was returning her 2006 dismissal motion before Sheppard J. on Monday, June 4, 2007 at 2:15 p.m. (a date obtained from the St. Catharines trial coordinator). [page598]

Mar. 14: Elkin forwarded to Priday the clinical notes and records of Dr. Sandra Stewart. [See Note 40 below] Dr. Stewart had provided those records to Elkin in July of 2006!

Mar. 15: Elkin forwarded OHIP summaries to Priday.

Mar. 26: In a three-page letter to Elkin, Priday confirmed receipt of the two letters from him, dated March 14 and 15. The former enclosed the redacted records of Dr. Stewart. Said Priday:

I have also copied you on my letter to [the plaintiff's ex-husband] asking for his authorization to obtain the whole of his ex-wife's file in order to avoid having to move for it.

The letter of March 15 enclosed two OHIP summaries, one produced in March of 2002 and the second in August of 2004. Priday asked:

Is there any reason why these have been held back? You wrote to me in July of 2006 to advise that you had OHIP summaries, and I followed up several times but only now, after I set down another motion, have you produced them. [See Note 41 below]

Priday continued in respect of the OHIP summaries and the difficulties ensuing from their late production:

Regrettably, because the OHIP summaries arrived in our office almost ten years since the alleged tort and seven years since the claim was commenced, they are quite incomplete. We should have records going back two years before the incident as you undertook to provide. You also undertook if there were any musculoskeletal issues in those two years, to ask OHIP to go back further. Since it has taken one full year since that discovery for me to get those records, it is regrettable that they do indeed show musculoskeletal complaints . . .

Priday correctly described the delay as "unconscionable".

Priday then set out the names of 32 doctors from the OHIP summaries for which records were [page599] necessary, adding "most of these doctors were not mentioned by your client on discovery". By May of 2007, the records of only three doctors had been produced.

Mar. 27: Priday sent a letter to the plaintiff's ex-husband asking for his consent to the release of the redacted portions of Dr. Stewart's file. The letter was copied to Elkin and to Dr. Stewart.

May 9: Having not received a response from the ex-husband, Priday forwarded a follow-up letter.

May 22: Priday brought a motion returnable June 4, 2007 at St. Catharines. The motion sought an order "dismissing the plaintiff's claim with costs of this motion, the previous motions and various attendances and the action". In the alternative, the motion asked for "an order for the full . . . records of Dr. Sandra Stewart, a psychologist who has redacted portions of those records which relate to [the plaintiff]'s marriage . . .". [See Note 42 below]

May 25: In a seven-page letter to Priday, Elkin discussed certain production problems (maintaining that the plaintiff had fulfilled all of her undertakings but that the defendant had not done so) and he expressed concern that, "despite knowing about my client's claim, it appears the TTC knowingly and deliberately destroyed and purged documents related to my client's action . . .". Elkin advised that he would be bringing a cross-motion returnable June 4, 2007 "to strike out your client's statement of defence pursuant to rule 30.08(2) for failure to produce numerous litigation related documents for inspection . . .". [See Note 43 below] [page600]

Elkin concluded his letter by saying:

. . . you have failed to fulfill undertakings and to properly address questions put to your client's representative . . . , your client has destroyed documents causing irreparable prejudice to my client's claim [See Note 44 below] and you have misled the court regarding [the janitor's] capacity to act as a witness. [See Note 45 below] In short, your actions, and the actions of your client, have caused unnecessary delay [See Note 46 below] and have unnecessarily added to the costs of these proceedings . . .

May 29: Elkin brought a motion on behalf of the plaintiff, returnable June 4, seeking the following relief:

- 1) An order striking out the statement of defence "with costs to the plaintiff of this motion and the previous motion (heard February 16, 2006) . . .";
- 2) In the alternative, an order compelling the defendant "to

produce a better and further affidavit of documents . . .
 to produce documents arising from undertakings . . . to
 re-attend at a further examination for discovery . . . to
 answer refusals given to requests for undertakings . . .
 to answer proper questions arising out of the
 undertakings . . .";

- 3) In addition to the relief sought in paragraph 2, an order further amending the Amended Statement of Claim by changing the name of the defendant to "Toronto Transit Commission".

As grounds for the relief sought, Elkin made a number of allegations against Priday personally, including that she

- 1) . . . has refused to produce relevant documents in the defendant's possession, power and control or to provide a reasonable explanation as to why the documents are no longer in the defendant's possession, power or control;
- 2) . . . has repeatedly refused to answer questions arising from undertakings given at the defendant's examination for discovery held on March 27, 2006;
- 3) . . . has failed to provide full and complete responses to undertakings given at the defendant's examination for discovery; [page601]
- 4) . . . repeatedly objected to questions at the defendant's examination for discovery when the objections were improper and ungrounded, and served to frustrate the examination for discovery process;

- 8) . . . [and] the defendant and/or the defendant's agents . . . are responsible for the delay of this action, due to their unnecessary and delay-causing tactics and specifically their refusal to produce an appropriate representative for the defendant at examinations for discovery, who had knowledge, information and belief bearing on the slip and fall incident. [See Note 47

below]

As against the "defendant and/or the defendant's agents", the notice of motion says that they

- 5) . . . have destroyed relevant evidence . . . thereby causing irreparable prejudice to the plaintiff;
- 6) . . . have attempted to delay the proceedings;
- 7) . . . have attempted to add, unnecessarily, to the costs of the proceedings.

Jun. 4: This was the return date for the motions of the parties, obtained by special appointment. Effectively, there were four motions before the court: the two originally returnable on February 16, 2006; and the two served for June 4. The latter were extensions of the first two, claiming expanded relief.

According to correspondence from Elkin to Priday, purporting to summarize the events of the day, the new motion materials were not in the court file, and, when they were located, the presiding judge, Sheppard J., felt that there was insufficient time for them to be read and the motion argued within the afternoon that had been set aside. Sheppard J. was prepared to hear the motions the following day, but Priday was unavailable. His Honour, although previously having seized himself of the motions (on February 16, 2006), ordered that the matters be heard by a different judge as his schedule might not permit argument earlier than 2008. [page602]

In his written submissions, Swart states that Sheppard J. "endorsed the plaintiff's motion record . . . directing that the motion be adjourned to a date to be set by the trial co-ordinator in consultation with counsel [and] His Honour further endorsed that if an agreed date cannot be reached, either counsel may apply to the court for directions". [See Note 48 below]

Elkin and Priday attended upon the trial coordinator to obtain

a new date. Priday, although without her diary, thought that she was unavailable until December of 2007. [See Note 49 below] The matter was left for counsel to correspond with each other to determine available dates. Priday stated that she might request that the registrar arrange a status hearing.

Jun. 7: Elkin wrote to Priday and summarized the events of June 4 as above.

Jun. 12: In a letter to Priday, Elkin asked: "In order to move this matter along, would you be prepared to consent to having the registrar place this matter on the trial list?" [See Note 50 below]

Jun. 12: Priday replied to Elkin:

Please feel free to serve the trial record if you like. I am not consenting to that, nor do I need to. You do what you see fit.

Jun. 29: Elkin forwarded a draft order to Priday (arising out of the June 4 court attendance) and requested her approval as to form and content. Following a lengthy preamble, the operative part of the order reads: [page603]

1. THIS COURT ORDERS that the motions be adjourned to a date to be set by the trial coordinator in consultation with counsel.
2. THIS COURT ORDERS that if an agreed date for the return of the motion cannot be reached, either counsel may apply to the court for directions.
3. THIS COURT ORDERS that The Honourable Mr. Justice J.E. Sheppard is not seized of this matter.
4. THIS COURT ORDERS that the costs of the day are to be reserved to the judge presiding over the return of the motions.

A copy of an endorsement was sent to Priday, but it was the

incorrect endorsement.

July 4: Priday sent a letter to Elkin asking for a copy of the endorsement of June 4, absent which, she said, "I cannot approve your draft order."

Aug. 8: Elkin's office forwarded to Priday a copy of the June 4 endorsement.

Sept. 14: Elkin's office wrote to Priday requesting her approval of the order previously sent.

Sept. 24: Priday advised Elkin by letter that she saw no reason for the order, as "nothing was ordered. [See Note 51 below] The matter was adjourned and that does not require an order . . . I see no reason to do anything more than find a date for the matter to be returned." [See Note 52 below]

2008

Based upon the evidence filed, the case slid into a black hole during which nothing happened. [page604]

2009

According to the evidence filed, the case remained in the black hole and nothing happened. [See Note 53 below]

2010

Mar. 22: Roelf A.M. Swart ("Swart"), a lawyer with the Elkin firm, forwarded a six-page letter to Priday responding to a voice mail message left by the latter on February 2, 2010, which Swart described as "disconcerting". Swart reviewed the events since 2007 [See Note 54 below] and, interestingly, he blamed Priday for the delay:

We have no indication in our file that at any time in the last two and a half years you have even attempted to contact our office or to otherwise cooperate with respect to finding a date for the return of this matter, including your motion seeking to dismiss the plaintiff's action. With great respect to you any delay in moving this matter rests with you [See Note 55 below] and we will advise the court

accordingly . . .

We intend to proceed with our motion for the relief as requested in our motion record originally returnable June 4, 2007 . . . [See Note 56 below]

Mar. 22: Priday replied the same day:

. . . I am not going to argue the case with you. If you intend to pursue it, kindly update every medical, tax, disability, employment or other relevant file, including up to date OHIP. A status hearing will establish dates for those to be provided, if it does not result in a dismissal for failing to set the matter down for trial.

As noted by you in your letter, quoting me, you did not need my consent to set the matter down for trial. That you chose not to do so was your office's decision . . . [page605]

Mar. 31: Swart wrote to Priday:

Further to our mutual assistants' conversation of Thursday March 25, 2010, we are of the understanding that you are not willing to provide us, at this time, with your availability for the return of our motion . . . It is my understanding that you only wish to proceed to a status hearing and that you believe attendance at the status hearing would obviate the need for the return of our motion . . .

Given the reluctance encountered and lack of cooperation in setting up a new date for the return of our motion, it is clear that we cannot count on your cooperation with respect to the relief sought in our motion. As we consider the relief as identified in our motion record, pertaining to further documentary disclosure and pertaining to a need for further discoveries, essential to our client's case, we are of the view that our client would be ill served at the present time with the passing of our trial record . . .

April 5: Priday sent a letter to Swart which stated, in part:

Thank you for the time you have spent outlining your position to me. I have reviewed it carefully. I also, as you know, have reviewed our transcripts and we do seem to see things differently in many ways . . .

. . . perhaps you can refresh my memory as to the motion your client wishes to bring. No matter its substance, I want a timetable in place, and thus I simply ask that a status hearing be arranged. If you do not wish to avail yourself of Rule 48, [See Note 57 below] we shall . . .

Many thanks for your attitude of courtesy throughout. [See Note 58 below]

April 9: Swart responded to Priday by e-mail:

With respect to a timetable, I have no difficulty to (sic) coming to an agreement on a tentative timetable. That being said, I haven't received your reply with respect to available dates for a return of our client's motion. I would assume that whoever hears our motion will also be inclined to deal with a timetable. I am of the mindset that the outcome of our motion greatly determines what additional steps have to be taken before we get to trial. [See Note 59 below] [page606]

As such, can you please provide us with your availability for the return of our motion?

. . . I respectfully have to decline your request for a re-examination [of] our client on some answers to undertakings. Perhaps you can assist me with more details regarding this request and I will consider your request further. [See Note 60 below]

July 13: Without consulting Priday, Elkin brought a motion returnable at St. Catharines on September 2, 2010. The motion sought "an order . . . providing direction with respect to determining a date for the return of the plaintiff's cross-motion, dated May 29, 2007, originally returnable June 4, 2007". In other words, the September 2 motion was to set a

date for the argument of the June 4 motion, not to argue the latter.

The grounds for the motion repeated those contained in the motion of the plaintiff returnable on June 4, 2007 and added the following:

- 8) The defendant's solicitor or solicitors have attempted to abuse the process of the court through a multiplicity of frivolous or vexatious motions; [See Note 61 below]
- 9) The plaintiff advanced a cross-motion dated May 29, 2007 in relation to the above referenced issues. The plaintiff's cross-motion was returnable June 4, 2007 by special appointment;
- 10) The plaintiff's cross-motion was not heard on June 4, 2007 due to a misfiling of the motion materials;
- 11) [The motion record was endorsed] on June 4, 2007 directing the motion be adjourned to a date to be set by the trial coordinator in consultation with counsel. [The presiding judge] further endorsed that if an agreed date cannot be reached, either counsel may apply to the court for directions;
- 12) During counsels' meeting with the trial coordinator, the defendant's counsel indicated that she did not have availability for the return of the motion until December 2007; [page607]
- 13) The defendant has resisted all efforts to arrange a date for the return of the motion and has unreasonably delayed moving the matter forward.

Aug. 16: Priday forwarded a letter to the registrar of the court at St. Catharines:

We have now received a voluminous motion record from the Elkin firm in this matter . . . It does not seem reasonable for me to travel to St. Catharines just to set a date for a

motion. Perhaps that can be addressed by telephone?

In addition, we are moving under Rule 4.05(2) to move this matter to Toronto since there is no one in St. Catharines except the Elkin firm . . . In my view, our motion to move the file should be heard before anything else proceeds in St. Catharines and my law clerk is arranging a date for that. Under the new rules, it will be heard in Toronto.

Thus, I withdraw my request for a status hearing in St. Catharines, subject to renewal if the matter is relocated to Toronto.

Aug. 24: Priday wrote to the trial coordinator at St. Catharines:

[The defendant has] a motion pending in Toronto to be heard on November 8, 2010, to move the matter here where the incident took place and where the witnesses are located. I would like to have the September 2, 2010 motion adjourned until after the Toronto motion is heard but I am advised that requires consent in order to be done other than by personal appearance. To this point, I do not have a response from opposing counsel on that issue.

If the motion goes ahead, it is proceeding only on the issue of setting a date, which is, in effect, an adjournment . . . I would ask that discretion be exercised to permit this motion by way of teleconference . . .

Aug. 26: Priday left a voice mail message for Swart:

. . . I have asked my assistant to call you tomorrow to ask you to either write to me or e-mail me with what your views are in terms of the multitudinous correspondence I have sent. I am not prepared to have a telephone conversation because those cannot be put in a motion record . . .

Aug. 26: Swart replied by e-mail:

. . . In your letter of August 18, 2010 you indicate that

you are bringing a motion in Toronto on [November 8], 2010 to transfer this action to Toronto. I disagree that this action should be transferred to Toronto and believe that this action, [page608] if transferred, should be heard in North Bay as the plaintiff, the lay witnesses, and treating professionals reside there. [See Note 63 below] Once we receive your motion record in relation to your transfer motion, we will provide you with our response . . .

With respect to your letter to [the trial coordinator] of August 24, 2010, I do not consent to proceeding with our motion by means of a telephone conference. I also do not consent to an adjournment . . .

Aug. 26: Priday sent the following e-mail to Swart:

I continue not to understand why you need a motion date to set a motion date. As I understand it, neither does the court office. You could have returned this motion at any time for years -- including September 2, 2010! I continue not to understand why you now need a date to be set in court for it to come back to court? I am bewildered. [See Note 63 below] The court office . . . have asked me why you did not simply set down the motion itself [See Note 64 below] but I cannot speak for you . . .

. . . I fail to see why we cannot simply set a date between us. As you know, I have repeatedly asked for a timetable of some kind, and my understanding was that you would set a date for the return of this motion as part of that . . .

. . . to move the matter to North Bay -- you would have to bring the motion in North Bay Superior Court . . .

. . . We made three attempts to set the venue matter down on a date which suited you but your office never responded and thus we had simply to chose a date . . .

Aug. 27: In an e-mail, Priday advised Swart that, on September 2, she was "prepared to argue your substantive motion . . ."

Aug. 27: In a second e-mail, Priday asked Swart to number "your motion record pages" as "it will be almost impossible for the court to work with these materials. . .". [See Note 65 below] [page609]

Aug. 27: Swart sent an e-mail to Priday. Like so many e-mails and correspondence in this action it purported to uselessly review historical events. Wrote Swart: "I cannot agree to your unilateral desire to now argue our cross-motion, dated May 29, 2007, on September 2, 2010." Swart expressed the desire to update his factum and brief of authorities "well ahead of a rescheduled motion". He concluded with: "I am still open to discuss dates [for] the rescheduling of our cross-motion however I must insist on retrieving our costs for having to advance our motion returnable September 2, 2010."

Aug. 27: Priday replied in an e-mail saying: "We will rely on your materials. Certainly we have every right to do that in order to move this along before the Toronto motion is heard."

Aug. 27: Priday left a voice mail message for Swart that included the following:

. . . you know, you have no right to examine me on why something is unavailable or not available. You have got your answers and you can do with them what you want. You can make your argument at trial. But I don't understand why you would have any issues with outstanding undertakings or refusals. We have answered everything and so let's push this case onto trial and let's do it in Toronto where it belongs . . .

Sept. 1: Priday e-mailed a copy of an affidavit to Swart that she intended to "ask the court to accept tomorrow".

Sept. 1: An affidavit was sworn by Swart's assistant, served on Priday and filed with the court for use on the motion. [See Note 66 below]

Sept. 2: This was the return date for the plaintiff's 2006, 2007 and 2010 motions (which are really now rolled into one and will be referred to simply as "the motion"). The defendant

chose not to return its 2006 and 2007 motions.

I expressed the desire to hear the substantive issues, rather than just set a date to do so. Priday was agreeable, but Swart was not so inclined. Rather [page610] than adjourn to some distant date, I ordered that the motion be heard by way of written argument.

Sept. 30: Swart delivered his written submissions. [See Note 67 below]

Oct. 26: Priday served and filed her responding factum.

Nov. 29: Swart delivered his reply submissions which included an affidavit from Elkin, sworn November 26, dealing with medical and other evidence.

Nov. 30: Priday forwarded a fax letter to me. It begins:

We have now received the reply submissions from the plaintiff.

Were this matter being heard orally, I would object to a great number of items as improper reply. I would also object to the filing of an affidavit in support of reply submissions since, in oral argument, no new evidence is permissible before reply is made . . .

The affidavit to which Priday refers is the one sworn November 26. Priday is correct in her objections. The evidence for the motion was fixed in time as of September 2, 2010. It was improper for an affidavit to be inserted as part of the plaintiff's reply submissions, without leave, but it is typical of the procedural gaffes in this action by the plaintiff.

Dec. 1: Swart forwarded a letter to me, complaining about the letter that I had received from Priday. In other words, he wrote to me pointing out how improper it was for Priday to have written to me. [See Note 68 below] It is fitting that the year ended on this note. [See Note 69 below]

[7] Having completed this eye-glazing review of what the lawyers have been doing on the file since 1998, I will now discuss [page611] the issues raised by the motion: (1) the refusals; (2) the unfulfilled undertakings; (3) the follow-up questions that the plaintiff wishes to put to the janitor and the availability of a further examination for discovery; (4) the purging of records by the TTC; (5) whether the statement of defence should be struck; (6) the amendment to the statement of claim; (7) whether the defendant should serve a further and better affidavit of documents; and (8) costs, particularly, the applicability of subrule 57.07(1).

III Discussion

1. Refusals

[8] The 2007 notice of motion of the plaintiff lists 11 questions the answers to which were refused by Priday on the examination for discovery of Cesare Dambrosio, the janitor (and the representative of the defendant whom the plaintiff chose to examine).

(a) Subrule 34.15(1)

[9] Subrule 34.15(1) of the Rules of Civil Procedure outlines the sanctions that may be imposed by the court where a person refuses to answer a proper question on an examination for discovery. I will set out the relevant passages:

34.15(1) Where a person fails . . . to answer any proper question . . . the court may,

- (a) where an objection to a question is held to be improper, order or permit the person being examined to reattend at his or her own expense and answer the question, in which case the person shall also answer any proper questions arising from the answer;
- (b) where the person is . . . , on an examination for discovery, a person examined on behalf . . . of a party, . . . strike out the party's defence;
- (c) strike out all or part of the person's evidence, including any affidavit made by the person; and
- (d) make such other order as is just.

(Emphasis added)

[10] I see no reason to invoke clause (b) -- it is too extreme; [See Note 70 below] clause (c) is not applicable in the circumstances of this case; and [page612] clause (d) is unnecessary. The appropriate sanction, most often, and certainly here, is found in clause (a) -- a re-attendance to provide the refused answer and to "answer any proper questions arising from the answer".

(b) Relevance and proportionality

[11] As of January 1, 2010, rule 31.06 was amended to remove what had become the semblance-of-relevance test, applicable to examinations for discovery, replacing the phrase "relating to any matter in issue" with "relevant to any matter in issue". The effect of this amendment, therefore, was to narrow the scope of discovery from anything with a semblance of relevance to that which is actually relevant.

10

[12] Yet, the well-established maxim that the relevancy of questions on discovery is established by the pleadings still holds true: see, for example, *Bergmann v. Amis Estate*, [2011] O.J. No. 556, 2011 CarswellOnt 772 (S.C.J.), at para. 5; *Araujo v. Jews for Jesus*, 2010 CarswellOnt 8408 (Master), at para. 17; and *Tanner v. McIlveen Estate*, [2009] O.J. No. 1648, 2009 CarswellOnt 2116 (S.C.J.), at para. 9.

[13] This, however, is not the end of the inquiry. According to subrule 29.2.02, rule 29.2, which came into force as part of the January 1, 2010 amendments,

. . . applies to any determination by the court under any of the following Rules as to whether a party or other person must answer a question or produce a document:

1. Rule 30 (Discovery of Documents).
2. Rule 31 (Examination for Discovery).
3. Rule 34 (Procedure on Oral Examinations).
4. Rule 35 (Examination for Discovery by Written Questions).

Consequently, rule 29.2 applies to refusals under Rule 34.

[14] Subrule 29.2.03 introduces the concept of proportionality to examinations for discovery:

29.2.03(1) In making a determination as to whether a party or other person must answer a question or produce a document, the court shall consider whether,

- (a) the time required for the party or other person to answer the question or produce the document would be unreasonable;
- (b) the expense associated with answering the question or producing the document would be unjustified;
- (c) requiring the party or other person to answer the question or produce the document would cause him or her undue prejudice; [page613]
- (d) requiring the party or other person to answer the question or produce the document would unduly interfere with the orderly progress of the action; and
- (e) the information or the document is readily available to the party requesting it from another source.

(2) In addition to the considerations listed in subrule (1), in determining whether to order a party or other person to produce one or more documents, the court shall consider whether such an order would result in an excessive volume of documents required to be produced by the party or other person.

[15] In summary, when considering whether a party should be ordered to answer a question which he or she argues is irrelevant, the court must first determine whether the question is relevant by having reference to the pleadings. Even if the question is relevant, the court must be alive to the proportionality concerns now entrenched in subrule 29.2.03.

(c) The pleadings

[16] The amended statement of claim seeks general damages of \$300,000 and special damages of \$100,000. The slip-and-fall incident is described in para. 4:

4. On or about the 14th day of October, 1997, at

approximately 7:00 a.m. the Plaintiff, Toni Andrea Blais was proceeding to walk from one platform within the TTC premises to another platform, to board a connecting bus to St. Catharines, when the Plaintiff slipped and fell on oil on the roadway or driveway or walkway before platform #3, causing the Plaintiff to fall to her knees onto the roadway. As a result of the aforesaid accident, the Plaintiff, Toni Andrea Blais, sustained injuries and damages.

[17] The allegations of negligence are found in para. 5:

5. The Plaintiff states, and the fact is, that the aforementioned accident was caused solely as a result of the negligence of the Defendant, the TTC, particulars of which negligence are as follows:-
 - (a) they failed to fulfil their duty of care to persons using the roadway, driveway or walkway;
 - (b) they failed to repair or cause to repair the roadway between platforms which is or was a potential hazard to users of the bus terminal;
 - (c) they created a situation of danger for persons using the roadway, driveway or walkway;
 - (d) they failed to ensure the safety of persons and patrons using the bus terminal;
 - (e) they failed to give the Plaintiff, Toni Andrea Blais adequate or any warning of the state and condition of the said roadway between platforms;
[page614]
 - (f) they exposed the Plaintiff while she was walking within the TTC premises to risk, damage or injury as a result of the unsafe and dangerous condition of the terminal which they knew or ought to have known existed;
 - (g) they failed to properly care for and maintain the condition of the terminal;
 - (h) they failed to take reasonable or any steps to implement a program or procedure for the routine inspection and clean up of the terminals' roadways, driveways or walkways;
 - (i) they failed to take reasonable or any steps to implement a program or procedure for the routine

- cleaning and/or repairing of the roadways, driveways or walkways between platforms with in (sic) the coach terminal;
- (j) they permitted oil to accumulate on the roadway, driveway or walkway which is or was a hazard to users of the driveway, roadway or walkway;
- (k) they failed to take the proper steps, or any steps, to prevent the accumulation of oil on the roadway, driveway or walkway when they knew or ought to have known that is (sic) was a hazard to users of the driveway, walkway or roadway;
- (l) they failed to clear up the oil or to place sand or sawdust or some other absorbent material on the oil when they knew or ought to have known of the presence of the oil;
- (m) they employed incompetent servants, agents or employees to repair and monitor the terminal;
- (n) they failed to instruct properly, or at all, their servants, agents or employees, in proper methods and procedures to prevent the disrepair of the driveways, roadways or walkways of the terminal[.]

[18] The statement of defence, at para. 2, points out that the defendant has been improperly described:

2. The defendant is a statutory commission engaged in the transportation of passengers for hire in and about the city of Toronto and is improperly referred to in the Statement of Claim as the Toronto Area Transit Operating Authority.

[19] At para. 5, there is a denial of negligence on the part of the defendant and allegations that the plaintiff was injured because of her own negligence:

5. The defendant states that it was not in any way negligent or at fault for the injuries and damages alleged to have been sustained by the plaintiff, and, furthermore, states that such injuries and damages, if any, were occasioned solely as a result of the negligence of the plaintiff, the particulars of which are as follows:
 - (a) she failed to keep a proper lookout;

- (b) she lost her balance; [page615]
- (c) she tripped;
- (d) she was running;
- (e) she failed to take reasonable steps for her own safety;
- (f) she was wearing footwear which she knew or ought to have known was unsuitable and dangerous on the occasion in question;
- (g) she was carrying bags or other heavy or cumbersome articles in her hand or hands immediately prior to the occasion in question which resulted in her losing her balance and footing;
- (h) she was fatigued immediately prior to the occasion in question to such an extent that she had difficulty in maintaining her balance and footing;
- (i) she was not wearing eye-glasses or contact lenses on the occasion in question or, alternatively, her eye-glasses or contact lenses were defective resulting in her inability to maintain a proper lookout; and
- (j) she had consumed drugs, prescribed or otherwise, prior to the occasion in question to such an extent as to make her dizzy, nauseous and incapable of maintaining her balance and footing.

(d) The refusals

[20] In dealing with the refusals, I shall set out, in table format: (1) the question asked; (2) the refusal as articulated by Priday at the time of the examination for discovery; (3) the written submissions made by Priday, on behalf of the defendant, in the course of arguing the motion; and (4) the written submissions of Swart made, on behalf of the plaintiff, as part of his argument on the motion.

(i) Refusal #1

[QL:GRAPHIC NAME="1050R3d575-1.jpg"/]

[Editor's Note: [See Note 71 below] is included in the image above.]

[page616]

[21] The question, as phrased, is not relevant. The examining lawyer could have gone on to ask questions relating to meetings about "safety and inspection scheduling and reporting" in 1997 which would have been relevant, but he chose not to do so.

[22] The refusal is proper.

(ii) Refusal #2

[QL:GRAPHIC NAME="1050R3d575-2.jpg"/]

[Editor's Note: [See Note 72 below] is included in the image above.]

[23] The issue of the acronym "TCIT" arose because that is the name of the bus terminal (where the plaintiff fell) as described by the janitor:

Q.101 [on being shown a photograph] . . . Is that the terminal that you worked at in 1997?

A. Yes . . .

Q.102 . . . What's it called. What's the name of the terminal?

A. TCIT.

Q.103 TCIT. Counsel can you help me with that?

MS. PRIDAY: No. The official name of it is exactly as is shown in picture "L", Metro Toronto Coach Terminal.

MR. ELKIN: . . . And he refers to it as TCIT.

MS. PRIDAY: Which would be Toronto Coach -- I don't know what it is. It's probably an old name . . .

A. That's the name that I was given when I started.

MS. PRIDAY: It's also called the Bay Street Bus Terminal.
[page617]

[24] The janitor gave "TCIT" as the name of the bus terminal where the incident occurred and, therefore, the plaintiff is entitled to know the meaning of those letters.

[25] The refusal is improper.
(iii) Refusal #3

[26] The answer refused here is easier to understand if I provide some of the lead-in questions and answers:

Q.120 . . . You told me you started at the TTC five months before this accident happened . . .

A. Right.

Q.121 . . . During those five months did you work every day . . . at the Bay Street Terminal?

A. . . . I would go where I was needed and go from place to place. I would follow the schedule that was given to me . . .

.

Q.124 . . . So in the five months before the accident you were the floater janitor?

A. Yes.

[27] The next question prompted the refusal.

[QL:GRAPHIC NAME="1050R3d575-3.jpg"/]

[Editor's Note: [See Note 73 below] is included in the image

above.]

[page618]

[28] Because the janitor answered that, in the five months before the incident, he had worked at all of the TTC stations, the requested undertaking is not relevant.

[29] The refusal is proper.

(iv) Refusal #4

[QL:GRAPHIC NAME="1050R3d575-4.jpg"/]

[page619]

[QL:GRAPHIC NAME="1050R3d575-5.jpg"/]

[30] The question is relevant for the reasons given by Swart.

[31] The refusal is improper.

(v) Refusal #5

[QL:GRAPHIC NAME="1050R3d575-6.jpg"/]

[page620]

[QL:GRAPHIC NAME="1050R3d575-7.jpg"/]

[32] The question is relevant for the reasons given by Swart.

[33] The refusal is improper.

(vi) Refusal #6

[QL:GRAPHIC NAME="1050R3d575-8.jpg"/]

[page621]

[QL:GRAPHIC NAME="1050R3d575-9.jpg"/]

[34] This question is the equivalent of asking "Would you give me the names of those persons who might reasonably have knowledge of the cleaning procedures at the Bay Street bus terminal?" Such a question is expressly permissible pursuant to subrule 31.06(2):

31.06(2) A party may on an examination for discovery obtain disclosure of the names and addresses of persons who might reasonably be expected to have knowledge of transactions or occurrences in issue in the action, unless the court orders otherwise.

[35] The refusal is improper. [page622]
(vii) Refusal #7

[QL:GRAPHIC NAME="1050R3d575-10.jpg"/]

[36] The janitor was not asked, previous to the refusal, whether "there are lots of people getting onto buses and off of buses . . . between 7:00 and 10:00". He did say, in answer to question 91 -- "Between 7:00 and 10:00 they're very busy periods, so it would not have been physically safe for me"; and, in answer to question 93 -- "After 10 o'clock we have a lot less buses in the lot and then I can clear the oil patches. . . ."

[37] We also have the answers to questions 97 and 107:

Q.97 Okay. Thanks. Cesare, from 7:00 until 10:00 you've told

me it's very busy in the terminal?

A. Right.

.

Q.107 And between 7:00 and 10:00 in the Bay Street terminal, it was very busy with buses?

A. Yes, as I said before. [page623]

[38] And, finally, in answer to question 156, he testified: ". . . I don't tend to the buses between 7:00 and 10:00 o'clock in the morning".

[39] Although, I suppose, "Yes" might be inferred as the answer to question 157, the question was not answered directly. It is relevant for the reasons stated by Swart.

[40] The refusal is improper.
(viii) Refusal #8

[QL:GRAPHIC NAME="1050R3d575-11.jpg"/]

[41] The question is relevant for the reasons stated by Swart.

[42] The refusal is improper.
(ix) Refusal #9

[QL:GRAPHIC NAME="1050R3d575-12.jpg"/]

[page624]

[QL:GRAPHIC NAME="1050R3d575-13.jpg"/]

[43] Any question taken under advisement is, of course, to be treated as if it were a refusal.

[44] Priday has not identified a specific section of the legislation upon which she relies. Accordingly, I assume that there is no statutory prohibition to releasing the information sought. In any event, the information is relevant under subrule 31.06(2), and relevance would prevail over such a prohibition.

[45] The refusal is improper. [page625]

(x) Refusal #10

[QL:GRAPHIC NAME="1050R3d575-14.jpg"/]

[46] The refusal is improper for the same reason expressed in respect of refusal #9.

(xi) Refusal #11

[QL:GRAPHIC NAME="1050R3d575-15.jpg"/]

[Editor's Note: [See Note 74 below] is included in the image above.]

[page626]

[QL:GRAPHIC NAME="1050R3d575-16.jpg"/]

[47] Clause 31.06(1)(b) of the Rules of Civil Procedure provides that "no question may be objected to on the ground that . . . the question constitutes cross-examination, unless the question is directed solely to the credibility of the witness".

[48] Based on the answer to question 199, question 200 amounts to cross-examination on credibility.

[49] The refusal is proper.

2. Unfulfilled undertakings

(a) What is an undertaking?

[50] In *S.E. Lyons and Son Ltd. v. Nawoc Holdings Ltd.* (1978), 20 O.R. (2d) 234, [1978] O.J. No. 2724 (H.C.J.), Master Sandler made the following comment on the nature of an undertaking [at para. 4]:

In my view, an "undertaking" to provide factual information, given either by the witness or by counsel, is nothing more or less than an acknowledgement that the question is a "proper" one . . . but the witness is unable to answer it when asked.

(b) Are any undertakings unfulfilled?

[51] The undertakings have been identified in a rather awkward manner. It appears that we are working from a list attached as Exhibit "BB" to an affidavit filed by Robert G. Lamont, a lawyer with the Elkin firm, sworn May 29, 2007 (delivered in respect of the 2007 motion). I would have expected a more current list and one restricted to unfulfilled undertakings. Exhibit "BB" contains 22 allegedly unfulfilled undertakings, but only 17 of them were raised by Swart in his argument. It is those 17 with which I have concerned myself.

[52] Here we see another fundamental misunderstanding of the discovery process displayed by the plaintiff's lawyers.

[53] From what I am able to determine, all of the undertakings have been fulfilled. What the lawyers for the plaintiff seek are answers to collateral written questions raised in response to [page627] fulfilled undertakings from an oral discovery. Those questions are of four types: (1) they are probative of the information given by Priday to Elkin and Swart, suggesting that the latter have the right to know how Priday obtained the information; (2) they go behind the "best efforts" of Priday; (3) they purport to be in follow-up to the fulfilled undertaking; and (4) they question, directly or

indirectly, whether documents truly were purged by the TTC (as Priday advised during the examination for discovery of the defendant) or are otherwise being withheld.

[54] There is no need for me to go through each of the 17 undertakings. I will select the first undertaking said to be unfulfilled (undertaking #5) as it is generally representative of the other 16.

[QL:GRAPHIC NAME="1050R3d575-17.jpg"/]

[page628]

[QL:GRAPHIC NAME="1050R3d575-18.jpg"/]

[55] Priday is correct. This undertaking has been satisfied. Opposing counsel is not required to respond to written follow-up questions that flow from information provided in fulfilment of undertakings given on an oral examination for discovery. There is no rule or legal principle that provides for such a requirement. [See Note 75 below]

[56] Perhaps I will select one more representative undertaking.

[QL:GRAPHIC NAME="1050R3d575-19.jpg"/]

[page629]

[QL:GRAPHIC NAME="1050R3d575-20.jpg"/]

[57] This undertaking has been satisfied. Priday is not required to respond to the written follow-up questions.

[58] As the remaining undertakings alleged to be outstanding follow the same pattern of the two that I have addressed, I find that all of the undertakings have been satisfied and what the plaintiff complains about is the failure of the defendant to answer further questions raised by letter. [See Note 76 below]

3. Follow-up questions and a further examination for discovery

(a) What is the mechanism for follow-up questions?

[59] Absent an agreement by counsel to the contrary, the mechanism, by which a party may put follow-up questions to a witness who has provided information in fulfilment of undertakings, is a motion, under subrule 31.03(1), for leave to conduct a further examination for discovery. The rationale for a further discovery is that the first one has not been completed.

[60] Subrule 31.03(1) states that only with leave may a party be examined for discovery more than once:

31.03(1) A party to an action may examine for discovery any other party adverse in interest, once, and may examine that party more than once only with leave of the court, but a party may examine more than one person as permitted by subrules (2) to (8). [See Note 77 below]

(b) When is an examination for discovery completed?

[61] In *Senechal v. Muskoka (Municipality)*, [2005] O.J. No. 1406, 138 A.C.W.S. (3d) 639 (S.C.J.), the court, after adopting the view espoused in *S.E. Lyons and Son Ltd. v. Nawoc Holdings Ltd.*, supra, [page630] that undertakings are an acknowledgment that a question is proper, said, in part, at para. 5:

Generally speaking, had . . . the answer to the undertaking been available, not only would the answer have been given under oath as part of the transcript but the examining party would have been entitled to ask appropriate follow up questions as part of the examination. Arguably then an answer that genuinely gives rise to follow up questions should give rise to a right to complete the oral discovery as if the

question has been answered.
(Emphasis added)

[62] Therefore, the examination of a party is not completed until all proper follow-up questions have been asked and answered.

(c) When is a follow-up discovery appropriate?

[63] The court in *Senechal v. Muskoka (Municipality)*, supra, summarized, at para. 7, the appropriate approach in ordering a follow-up discovery, including a non-exhaustive list of examples of when such an order might be appropriate:

- As a general principle a party giving undertakings or answering refusals may be required to re-attend to complete the discovery by giving the answers under oath and answering appropriate follow up questions. A party being examined may not compel the examining party to accept answers in writing simply by refusing to answer questions or by giving undertakings.
- On the other hand, the court will not automatically make an order for follow up discovery if it serves no useful purpose. Examples in which an order may not be appropriate would be cases in which a full and complete written response has been given to a simple question, in which the answer demonstrates that the question was not relevant or in which the parties have agreed that written answers will suffice.
- The court will generally make such an order if it appears necessary in order to fulfill the purposes of discovery. Examples of situations in which an order would be appropriate are situations in which the answers appear cursory or incomplete, where they give rise to apparently relevant follow up questions that have not been asked, if newly produced documents require explanation, or the discovery transcript supplemented by the answers will not be understandable or useable at trial.
- Even if answers do appear to require follow up, the court

has discretion to order answers in writing or to decline to order further examination where it appears the cost or the onerous nature of what is proposed outweighs the possible benefit or where for any other reason it appears unjust to make such an order. Such discretion should be exercised only if the interests of justice require it.

(Emphasis added) [page631]

(d) Relevant rules

[64] Subrule 29.2.03, as I indicated earlier, applies to all motions relating to discoveries and, accordingly, is to be considered when contemplating leave under subrule 31.03(1). It requires the court to consider issues of proportionality in deciding such motions. I will set out subrule 29.2.03(1) once more for convenience:

29.2.03(1) In making a determination as to whether a party or other person must answer a question or produce a document, the court shall consider whether,

- (a) the time required for the party or other person to answer the question or produce the document would be unreasonable;
- (b) the expense associated with answering the question or producing the document would be unjustified;
- (c) requiring the party or other person to answer the question or produce the document would cause him or her undue prejudice;
- (d) requiring the party or other person to answer the question or produce the document would unduly interfere with the orderly progress of the action; and
- (e) the information or the document is readily available to the party requesting it from another source.

(2) In addition to the considerations listed in subrule (1), in determining whether to order a party or other person to produce one or more documents, the court shall consider whether such an order would result in an excessive volume of documents required to be produced by the party or other person.

[65] Where leave is granted under subrule 31.03(1), the general scope of the further examination for discovery is governed by the same subrule -- 31.06(1) -- that applied to the initial discovery:

31.06(1) A person examined for discovery shall answer, to the best of his or her knowledge, information and belief, any proper question relevant to any matter in issue in the action or to any matter made discoverable by subrules (2) to (4) and no question may be objected to on the ground that,

- (a) the information sought is evidence;
- (b) the question constitutes cross-examination, unless the question is directed solely to the credibility of the witness; or
- (c) the question constitutes cross-examination on the affidavit of documents of the party being examined.

(e) Conclusion regarding follow-up questions

[66] The plaintiff is entitled to leave to conduct a further examination for discovery of Cesare Dambrosio for the purpose of obtaining, under oath, the responses to the undertakings and to put to him any proper follow-up questions. I say again that I [page632] make no comment on whether the follow-up questions, as set out in Swart's written argument, are proper, as no submissions were directed to the individual questions.

4. Purged records

[67] It is acknowledged by Priday that some records, created around the time of the incident, have been destroyed by the TTC as part of its normal purging practices. [See Note 78 below]

[68] Priday argues that "a minor event involving a slip in a bus bay would not affect purge policies of tangential records. If the plaintiff wishes to argue this normal purging was spoliation, she will have to persuade a jury that the TTC should keep every document -- but that is an evidentiary argument and not properly the subject of an undertakings motion. In this instance, the reports of the event were kept (and produced) and all show nothing but a simple issue."

[69] The Incident Report, the Occurrence Report, the tape of the interview between the plaintiff and the insurance adjuster, Wendell Pilgrim, and the transcription of the tape were kept by the TTC and produced in the litigation. Priday submits that Elkin's view "that every record relating to that day and the months preceding it showing work schedules should have been retained is offset by the very minor nature of the complaint and the lack of liability, [See Note 79 below] as well as by simple reasonableness which is the test on an occupier's liability claim". [page633]

(a) The Rules

[70] Subrule 30.02(1) of the Rules of Civil Procedure imposes an obligation on parties to litigation to make disclosure of "[e]very document relevant to any matter in issue in an action that is or has been in the possession, control or power of a party to the action . . .".

[71] By virtue of clause 30.03(2)(c), disclosure of such documents is accomplished through the service of an affidavit of documents containing a schedule (Schedule "C") that lists and describes:

30.03(2) . . . all documents relevant to any matter in issue in the action,

.

- (c) that were formerly in the party's possession, control or power, but are no longer in the party's possession, control or power, whether or not privilege is claimed for them, together with a statement of when and how the party lost possession or control of or power over them and their present location. [See Note 80 below]

(b) The doctrine of spoliation -- an evidentiary rule

[72] The "destruction or material alteration of evidence or the failure to preserve property for another's use as evidence in pending or reasonably foreseeable litigation" is known as spoliation: see *Cheung (Litigation Guardian of) v. Toyota*

Canada Inc., [2003] O.J. No. 411, 2003 CarswellOnt 481 (S.C.J.), at para. 1.

[73] The doctrine of spoliation is an evidentiary rule that imposes "a rebuttable presumption of fact that the lost or destroyed evidence would not assist the spoliator. The presumption can be rebutted by evidence showing the spoliator did not intend, by destroying the evidence, to affect the litigation, or by other evidence to prove or repel the case": see McDougall v. Black & Decker Canada Inc., [2008] A.J. No. 1182, 2008 CarswellAlta 1686 (C.A.), at para. 29. [page634]

[74] In addition to being an evidentiary rule, there is also some support for the use of spoliation as an independent cause of action, although the law in this regard remains unsettled: see Spasic Estate v. Imperial Tobacco Ltd. (2000), 49 O.R. (3d) 699, [2000] O.J. No. 2690, 2000 CarswellOnt 2522 (C.A.), at para. 24.

(c) Procedure/timing

[75] Where spoliation has, or is alleged to have, occurred, it may be dealt with in a number of ways. However, the bulk of the authority supports the conclusion that it is best left to the trial judge: see, for example, Cheung (Litigation Guardian of) v. Toyota Canada Inc., supra, and McDougall v. Black & Decker Canada Inc., supra.

[76] In Cheung (Litigation Guardian of) v. Toyota Canada Inc., three defendants brought a motion against a fourth for spoliation of evidence and breach of a preservation order. They sought a dismissal of the defendant's cross-claim against them, as well as its defence to the plaintiff's claim. The responding defendant agreed that sanctions were appropriate, but argued that those proposed by the moving defendants were too onerous. In the words of Justice Hoy, at para. 1, the real issue was the appropriate sanction, "given the particular facts and the extent of prejudice to the three moving defendants and given that this motion is made prior to trial".

[77] The moving defendants argued, at para. 9, that the court had inherent jurisdiction to impose sanctions for spoliation

prior to trial and that the loss or destruction of evidence need not be intentional or in bad faith. This position was based, in part, on case law from the United States. The responding defendant took the position that intention or bad faith was necessary and that sanctions could only be imposed by the trial judge.

[78] Justice Hoy held that the question of whether intention or bad faith is required was one for the trial judge. Moreover, even if the United States authorities were to be followed (holding that intention or bad faith was unnecessary), the prejudice to the moving parties caused by the spoliation was not grave enough to warrant the severe sanction of dismissing the respondents defence. In declining to impose any sanctions for spoliation, Justice Hoy states, at para. 23, the following proposition:

As to whether any sanctions can be imposed for spoliation prior to trial in the absence of evidence of intentional destruction or alteration through bad faith, in reliance on the courts inherent jurisdiction, it seems to me that in appropriate circumstances the court should be able to impose sanctions. I suspect that often such sanctions are more appropriately dealt with at trial, and I believe that is the case here. [page635]

[79] This view was shared by Justice Healey in *Muskoka Fuels v. Hassan Steel Fabricators Ltd.*, [2009] O.J. No. 4782, 2009 CarswellOnt 7008 (S.C.J.). That case involved a motion brought by the defendant at the commencement of trial to strike the plaintiff's pleadings or, alternatively, to bar its expert from testifying, on the basis of spoliation of evidence. The cause of action centered on a defective fuel tank. The plaintiff had failed to preserve the fuel tank, resulting in the inability of the defendant to have it inspected by its expert.

[80] In declining to grant the relief requested, Justice Healey, at para. 5, relied on *McDougall v. Black & Decker Canada Inc.*, *supra*, and stated:

. . . in order to strike the pleading the appellate court in

McDougall has made it clear that I should not do so unless spoliation has been proved, in that it is beyond doubt that this was a deliberate act done with the clear intention of gaining an advantage in the litigation, and the prejudice is so obviously profound that it prevents the defendant from mounting a defence.

[81] Healey J. held that it would be problematic to grant relief without the benefit of a full evidentiary record and found further support for this conclusion in *Spasic Estate v. Imperial Tobacco Ltd.*, supra, at para. 22, where the court stated that the existence of an independent tort of spoliation was a question to be determined by the trial judge on the basis of a full evidentiary record.

[82] In *McDougall v. Black & Decker Canada Inc.*, supra, Madam Justice Conrad, at para. 29, writing for the court, summarized the principles applicable to the law of spoliation in Canada as follows:

1. Spoliation currently refers to the intentional destruction of relevant evidence when litigation is existing or pending.
2. The principal remedy for spoliation is the imposition of a rebuttable presumption of fact that the lost or destroyed evidence would not assist the spoliator. The presumption can be rebutted by evidence showing the spoliator did not intend, by destroying the evidence, to affect the litigation, or by other evidence to prove or repel the case.
3. Outside this general framework other remedies may be available -- even where evidence has been unintentionally destroyed. Remedial authority for these remedies is found in the court's rules of procedure and its inherent ability to prevent abuse of process, and remedies may include such relief as the exclusion of expert reports and the denial of costs.
4. The courts have not yet found that the intentional destruction of evidence gives rise to an intentional tort, nor that there is a duty to preserve evidence for purposes of the law of

negligence, although these issues, in most jurisdictions, remain open. [page636]

5. Generally, the issues of whether spoliation has occurred, and what remedy should be given if it has, are matters best left for trial where the trial judge can consider all of the facts and fashion the most appropriate response.
6. Pre-trial relief may be available in the exceptional case where a party is particularly disadvantaged by the destruction of evidence. But generally this is accomplished through the applicable rules of court, or the court's general discretion with respect to costs and the control of abuse of process.

(Emphasis added)

(d) Conclusion on purged documents (spoliation)

[83] There has been spoliation of evidence by the defendant through the intentional purging of documents. However, there is no evidence that the spoliation was a deliberate act done with the intention of gaining an advantage in this litigation. [See note 81 below] As well, it is not clear to me what prejudice has befallen the plaintiff.

[84] There are three possible methods of dealing with this issue, and, depending on the importance of the purged documents and the prejudice engendered by their spoliation, any one or a combination of these methods might be appropriate: (1) on a further examination for discovery of Cesare Dambrosio; (2) as part of a specific motion; or (3) at the time of trial.

[85] As the spoliation of documents is not fatal to the plaintiff's case, I think that the most appropriate method is to deal with the issue at trial. Assuming the plaintiff does not wish to argue a separate cause of action of spoliation (which may or may not be available), I do not believe there is a need to amend the pleadings. In *Spasic Estate v. Imperial Tobacco Ltd.*, supra, at para. 25, the court held that the doctrine of spoliation is a rule of evidence and there is no need for it to be pleaded.

[86] Naturally, the plaintiff will want to lead evidence at

trial relating to the missing documents, some of it presumably coming from the defendant. Therefore, it makes tactical sense that the plaintiff would canvass the issue on the further examination for discovery of the defendant to determine details regarding the contents of the purged documents and the reasons for the purging. Accordingly, on the facts of the case as I understand them, I think that the following approach might be suitable:

- The plaintiff should canvass the issue of spoliation on the further examination for discovery of the defendant with a view to [page637] acquiring details behind the purging of the documents and the documents themselves. This is by no means a requirement, but it seems to me a prudent course of action if the plaintiff wishes to explore the issue at trial with a view to having the trier of fact draw an adverse inference.
 - Unless the purged documents cause significant prejudice to the plaintiff's case, a pre-trial motion is not recommended as the courts, by and large, have held that the issue is best assessed at trial on a full evidentiary record.
 - At trial, the plaintiff may lead evidence of the spoliation, the circumstances under which it took place and any resultant prejudice. The defendant, in turn, may adduce evidence that the purging of the documents was not done to affect the litigation, so as to rebut the presumption that the spoliated evidence was detrimental to its position. It will then be up to the trier of fact to determine the impact of the spoliation on the plaintiff's case.
5. Should the statement of defence be struck?

[87] An order striking out the statement of defence was the primary relief sought by the plaintiff on the motion. The plaintiff has not advanced any ground that would even remotely warrant such relief: the agitation expressed by Elkin and Swart in respect of the purged documents is premature; the refusals were neither numerous nor obstructionistic; all undertakings have been fulfilled; there is no legal obligation on Priday to answer the many written questions posed by Elkin and Swart; and

the defendant did not cause the Ripleyian delay in this case.

6. Amendment to statement of claim

[88] The amendment to the statement of claim is uncontroversial. Effectively, it was raised by the defendant in para. 2 of the statement of defence. As well, Priday suggested the amendment in a letter to Elkin on November 22, 2004.

[89] Therefore, the statement of claim shall be amended by replacing the name of the current defendant with "Toronto Transit Commission".

[90] This may require consequential amendments to the pleadings (for example, para. 2 of the statement of defence) and so both parties are granted leave to make any needed consequential amendments to their pleadings arising from the amendment to the name of the defendant in the title of proceedings. [page638]

7. Further and better affidavit of documents from defendant

[91] I have already mentioned that the latest affidavit of documents from the defendant, served in 2006, did not list the purged documents in Schedule "C". For this reason alone, the defendant is required to provide a further and better affidavit of documents. [See Note 82 below] Rule 30.06(b) provides:

30.06 Where the court is satisfied by any evidence that a relevant document in a party's possession, control or power may have been omitted from the party's affidavit of documents, or that a claim of privilege may have been improperly made, the court may,

.

(b) order service of a further and better affidavit of documents[.]

[92] Of course, included in this affidavit will be any documents that have surfaced, or otherwise come to the attention of the defendant, since 2006.

8. Costs

[93] Costs are a troublesome issue.

[94] The fault for the shocking delay in this case must be placed at the feet, the slow moving feet, of the plaintiff's lawyers. This fact, and my disposition of the issues, raises the prospect of subrule 57.07(1) being applicable (and not only as to whether those lawyers should be responsible for all or some of the costs of the motion before me and the motions in front of Sheppard J., but also whether they should be prohibited from billing the plaintiff for all or part of their services rendered in connection with the motions).

[95] The spectre of subrule 57.07(1) requires that a costs hearing be conducted (for which the plaintiff's lawyers may wish to retain counsel) on a date to be obtained from the trial coordinator (and with fresh, stand-alone materials to be delivered on a timeline that I will determine when the hearing date is known).

[96] For the assistance of counsel, I raise the following concerns and offer some musings: [page639]

- (1) The notice of motion makes serious allegations of intentional wrongdoing against Priday personally, [See Note 83 below] all of which I hold to be unfounded. Should this fact, by itself, nullify any costs to which the plaintiff might otherwise be entitled? Should it result in costs being awarded against the plaintiff? Against the plaintiff's lawyers? On the substantial-indemnity scale?
- (2) Should the motion to dismiss for delay, brought by the defendant (initially returnable on February 16, 2006, brought back for expanded relief on June 4, 2007 and since abandoned), attract costs against the defendant (to the extent that the plaintiff is able to segregate services rendered defending against those motions, as opposed to the services performed in prosecuting the plaintiff's motions returnable on the same dates)?
- (3) The motion by the defendant, although abandoned, did result in Sheppard J. ordering that Priday had the right to conduct the first examination for discovery, a right that Elkin had persistently resisted to that point. Should this fact offset any negative costs consequences for the defendant flowing from the abandonment?

- (4) Why would it not be appropriate to order Elkin to pay the defendant's costs associated with the examination for discovery of the plaintiff that was aborted because Elkin insisted that the discovery be bifurcated?
- (5) The plaintiff failed on the primary relief that she sought in the motion, being the request that I strike out the statement of defence. Does that fact render her success sufficiently mixed to mean, at best, she should not be awarded any costs?
- (6) Since 1998, when the action was commenced, what has been accomplished?

IV Result

[97] The motion is allowed in respect of (1) eight of the 11 refusals; (2) the requirement that the defendant serve a further and better affidavit of documents, to include all documents relied upon to fulfill undertakings (with any heretofore purged documents to be listed in Schedule "C") and any documents that have surfaced since 2006 -- to be served within 30 days; (3) the [page640] request for Cesare Dambrosio to re-attend at a further examination for discovery to answer refusals; fulfilled undertakings; and proper follow-up questions to both -- with the discovery to take place within 90 days; (4) the amendment to the title of proceedings by deleting the defendant as now named, to be replaced by "Toronto Transit Commission", with leave to make any consequential amendments to the pleadings -- to be done within ten days.

[98] The motion is dismissed regarding (1) the unfulfilled undertakings; and (2) the request to strike out the statement of defence.

[99] Counsel shall obtain an appointment to argue the issue of costs and shall do so within 90 days or such later time as may be necessary to accommodate the schedule of the court.

[100] To summarize, the next steps in this action shall include the following:

- (1) Prepare a formal order and have it issued and entered.
- (2) Amend the title of proceedings in the statement of claim and regularize the pleadings by making any consequential

amendments.

(3) Obtain a date for the costs hearing.

(4) The defendant shall serve a further and better affidavit of documents.

(5) Cesare Dambrosio shall re-attend to be further examined for discovery.

[101] As this case has become a nightmare for everyone involved (if not an embarrassment), I assume that counsel will make cosmic efforts to settle at least some of the outstanding issues. I expect that the file is now an economic liability for both sides.

Motion granted in part.

Notes

Note 1: Geometrically speaking, the path of a case, from start to finish, should be plotted by a relatively straight line. Here, the path consists of concentric circles. In 2011, the parties are as close to the start and as far from the finish as they were in 2006.

Note 2: The TTC is improperly named in the statement of claim as "The Toronto Area Transit Authority, commonly referred to as The Toronto Transit Commission". When, in these reasons, I refer to "the defendant", I mean the TTC. The statement of claim shortly will be amended to show the TTC as defendant.

Note 3: No doubt a contributing factor to the delay in this case is that counsel for the defendant has had to deal with four different lawyers (all associated with each other) who have represented the plaintiff in some form of tag-team format.

Note 4: The defendant contends that Wendell Pilgrim "is long since retired from the TTC . . . he investigated this matter and had the most knowledge about it. He was offered as a witness for discovery while he was working for the TTC but the plaintiff refused".

Note 5: Why would any lawyer for a plaintiff permit two years for the delivery of a statement of defence? This was a harbinger of many more delays to come. A delay in serving a statement of defence leads to a delay in serving an affidavit of documents (and documentary disclosure has been the source of much complaint by the lawyers for the plaintiff).

Note 6: This was the first of an almost laughable number of attempts by the defendant to arrange examinations for discovery (which, in the result, were not commenced until 2006 and remain uncompleted to this day).

Note 7: Subrule 31.04(3) states: "The party who first serves on another party a notice of examination under rule 34.04 . . . may examine first and may complete the examination before being examined by another party, unless the court orders otherwise." And, importantly, having been the first to serve a notice of examination, the party does not lose the right to examine first merely because the discovery is cancelled or otherwise does not proceed and is rescheduled.

Note 8: I assume that this was because the plaintiff still could not be located.

Note 9: The better course would have been to move to set aside the Notice of Examination.

Note 10: There is no requirement that a date for discoveries must be mutually acceptable.

Note 11: If Elkin truly believed that the affidavit of documents was deficient, he should have moved for a further and better affidavit, pursuant to rule 30.06.

Note 12: For seven years, the lawyers for the plaintiff complained about the documentary disclosure of the defendant but did not bring a motion.

Note 13: This is correct. However, it was reasonable for Rogovein to have named Hamilton in the Notice of Examination

because that city had been mutually acceptable on October 23, 2000.

Note 14: And I mention that it is the lawyers for the plaintiff who, today, are accusing the defendant of delay.

Note 15: As 2001 came to an end, the delay in the action to this point was entirely the fault of the plaintiff's lawyers.

Note 16: This was clearly improper, as Rogovein had the right to conduct the first examination for discovery.

Note 17: Although Rogovein was correct in her entitlement to examine first, the proper course would have been to move to set aside the Notice of Examination.

Note 18: As the curtain came down on 2002, the delay in the action continued to be completely the fault of the plaintiff's lawyers.

Note 19: Schedule "B" documents are those that, according to Form 30B, "are or were in the corporation's possession, control or power that it objects to producing on the grounds of privilege".

Note 20: By the end of 2003, the delay in moving the action forward was the fault of the plaintiff's lawyers.

Note 21: This sounded too good to be true; and it was.

Note 22: Zaccak then was retired (and, in fact, had gone into retirement before the action was commenced). The Notice of Examination, therefore, effectively, was a nullity.

Note 23: This was an improper and outrageous restriction.

Note 24: The position taken by Elkin had the effect of delaying the action by two years (although either side could have done something almost immediately).

Note 25: Elkin seemed unable or unwilling to grasp the fact

that he was not entitled to examine the defendant in advance of Priday's discovery of the plaintiff. In my view, this misapprehension of the law added years to the delay in this action.

Note 26: Many seasons would come and go before the plaintiff sought to amend the statement of claim to properly name the defendant.

Note 27: To this point, I have attempted to track the efforts of the lawyers to arrange and conduct discoveries, but the task is not easy. There is a "Who's on first" air to the matter.

Note 28: By the end of 2004, the plaintiff's lawyers still were fully responsible for the horrendous delay in the action.

Note 29: As 2005 drew to a close, the plaintiff's lawyers continued to be the sole cause of the delay in the action.

Note 30: A technical point: I do not think that the Rules of Civil Procedure speak of cross-motions. A motion is a motion, whether it is being brought in the first instance or in response to, or at the same time as, another motion.

Note 31: The only reason that Priday had objected to producing Cesare Dambrosio for discovery was that he was not employed by the defendant as named in the statement of claim. Had Elkin amended the title of proceedings, as had been suggested to him earlier, to show the defendant as the TTC, I have no reason to think that Priday (while she did not think that the janitor was a good representative of the defendant to be examined) would have refused to produce Cesare Dambrosio upon being served with a proper Notice of Examination.

Note 32: I do not know why anyone would think that Priday should have consented.

Note 33: There was nothing unusual about the transcript. It was very usable.

Note 34: On hearing of the last-minute demand by Elkin on

November 19, 2004, that the plaintiff only be examined as to damages, Sheppard J. said: "That is amazing . . . Just amazing."

Note 35: By "second discovery", I understand Sheppard J. to have meant a discovery of a second representative of the defendant, not a further discovery of the janitor for follow-up questions arising from fulfilled undertakings.

Note 36: That is a serious failure. The plaintiff now alleges a back injury arising from falling on her knee and so an OHIP summary is crucial for the period pre-dating the incident.

Note 37: Not that such a gesture would have cured the faux pas.

Note 38: Priday was not obligated to respond to the new questions (I will address this issue in more detail later). Any proper questions flowing from answers to fulfilled (or allegedly fulfilled) undertakings may be raised in a further examination for discovery, where leave for such an examination is obtained. As I see it, one of the obstacles to this case developing momentum is Elkin's apparent belief that Priday was required to respond by letter to his requests for additional information and documentation.

Note 39: It is now the end of 2006, and I see no delay attributable to the defendant.

Note 40: The records contained redactions. Dr. Stewart advised that she would provide "an unedited copy of the file" upon receiving the consent of the plaintiff's ex-husband.

Note 41: Elkin has never explained why the OHIP records were withheld.

Note 42: I gather that, on the examination for discovery of the plaintiff, Elkin undertook to obtain the full records of Dr. Sandra Stewart, a treating psychologist. (There is a claim by the plaintiff for emotional harm and Dr. Stewart had provided marital counselling to the plaintiff and her now ex-husband.)

Note 43: Rule 30.08(2)(b) states: "Where a party fails to serve an affidavit of documents or produce a document for inspection in compliance with these rules . . . the court may . . . strike out the statement of defence, if the party is a defendant . . .".

Note 44: I do not know what documents could possibly have caused "irreparable prejudice" to the plaintiff's claim.

Note 45: This is an overstatement.

Note 46: It is almost humorous of Elkin to accuse Priday of causing a delay.

Note 47: I do not understand this ground. Elkin selected the janitor as the representative he desired to examine.

Note 48: I do not have a copy of this endorsement.

Note 49: If Elkin and Swart considered this too much of a delay, they could have returned the motion earlier and put Priday in the position of having to explain her unavailability. It also is curious that, as of June 12, 2007, Elkin was prepared to set the case down for trial. Yet, in 2010, the plaintiff maintains that she requires additional information and documents before she will be ready for trial.

Note 50: Why would Elkin seek the consent of Priday to set the action down for trial? Why would a defendant consent and give up the right to bring additional motions?

Note 51: I think that Priday was incorrect in her position. The court attendance of June 4 did produce an endorsement and, therefore, court orders. If Elkin thought it important to take out a formal order, he could have taken steps to "settle the order" under subrule 59.04(12) of the Rules of Civil Procedure.

Note 52: The year 2007 was relatively busy (at least in the context of this case) and I see no significant delay attributable to either side.

Note 53: It is shocking that the lawyers for the plaintiff allowed this case to languish for more than two full years.

Note 54: I cannot imagine a more useless exercise in this case than to summarize three years of unproductive activity.

Note 55: It is delusional to suggest that the delay in this case is the fault of Priday.

Note 56: Swart could have returned the motion in late 2007, or in 2008, or in 2009, simply by delivering a notice of return of motion for any Thursday (motions day in St. Catharines). Even if the motion could not be heard on that date, at least it, and the lawyers, would be before the court and a hearing date obtained.

Note 57: Rule 48 deals with matters related to setting an action down for trial and to status hearings.

Note 58: I assume that this is sarcasm.

Note 59: Such a statement, therefore, makes it difficult to understand why, almost two years after the court attendance of June 4, 2007, the plaintiff still had not returned her motion. How many letters does one write before acting?

Note 60: Interestingly, Swart opposes a further examination of the plaintiff by Priday arising out of answers to undertakings, yet he seeks a re-attendance by the janitor for that same purpose.

Note 61: Once again, the plaintiff's lawyers have made unwarranted personal allegations of wrongdoing against Priday.

Note 62: When the statement of claim was issued, the plaintiff lived in the City of St. Catharines.

Note 63: I share that bewilderment.

Note 64: More bewilderment.

Note 65: Swart did not heed this advice. The motion record was

three inches thick and, in one section, contained 36 exhibits. The exhibits were not sworn and they were separated by green sheets of paper, no tabs. The pages were not numbered. Priday was correct in her assessment of the difficulty the court would have "to work with these materials".

Note 66: Somehow, it seems fitting that both sides served affidavits on the day before the hearing.

Note 67: I must say that there were many misstatements of the evidence in the written submissions for the plaintiff, as catalogued at Tab "A" of the defendant's factum.

Note 68: Practice Direction to Priday and Swart: Never write directly to a judge about an ongoing case, unless invited to do so by the judge. Never. Any concerns that you have should be conveyed to the trial coordinator, who, after consulting with the judge, will advise as to the approach to be taken in the circumstances.

Note 69: The year 2010 was a busy one. However, the motion could have been returned earlier. The delay continued to be the fault of the plaintiff's lawyers.

Note 70: If it can be shown that the refusal to answer a proper question on behalf of the defendant has prejudiced the plaintiff in the conduct of her action, the statement of defence may be struck out. However, I should think that it would be rare for refusals alone to create such prejudice. Any prejudice in this case is the result of delay and I have concluded it is the lawyers for the plaintiff who are responsible for that delay.

Note 71: Counsel appear not to have addressed refusal #1 in their written argument. However, a chart filed by the plaintiff at the time of the June 4, 2007 motion (the "chart") states the position of the plaintiff, as follows: "[relevant] on the issue of safety and inspection scheduling and reporting".

Note 72: Once again, counsel did not deal with refusal #2 in their written submissions. But, based on the chart, it is contended on behalf of the plaintiff that the question is

relevant to the "determination of the proper name of the terminal".

Note 73: From the chart, the position of the plaintiff is: "[the question is relevant] to establish familiarity of the witness to routines of the TTC and whether or not the witness had worked in [the] Bay Street terminal before".

Note 74: In the chart, the position of the plaintiff is: "[the question is relevant] to confirm date of accident".

Note 75: Subrule 31.09(1) of the Rules of Civil Procedure imposes an ongoing obligation on a party who has been examined to make written disclosure of information where the party subsequently discovers that an answer given on discovery was, or has since become, incorrect or incomplete. This rule does not require a party to answer new questions; rather, it is a self-regulating requirement to disclose information pertaining to questions already asked if, and when, additional information becomes available.

Note 76: I make no comment on whether the further questions are proper, as no submissions were directed to the individual questions.

Note 77: For example, subrule 31.03(2) permits an examining party to examine more than one employee of a corporate party, with leave.

Note 78: The evidence of the defendant is that, in 1997, the TTC had 66 subway/bus stations, moved more than 379 million people annually, with a fleet of 2,364 vehicles servicing 146 routes over 107,821 miles. Since 1997, there has been a steady, incremental growth, such that, by 2009, the TTC moved an average of 1.7 million people per day or 472 million people annually. In any given year, more than 10,000 complaints or comments are made to the TTC, "ranging from lost umbrellas to law suits".

Note 79: Although liability and the extent of the injuries sustained by the plaintiff are not relevant on this motion, counsel for the defendant, in argument, has described the

incident in these words: "It is not in dispute that, at approximately 7:30 a.m., on October 14, 1997, the plaintiff was alighting from a bus on which she had been sleeping, during an 11-hour overnight motor coach trip from Northern Ontario. She was heavily laden with a duffel bag over each shoulder, a plastic shopping bag and a pillow. She was sleeping on the bus with contact lenses on her eyes, although she admitted this was not recommended and that it had dried out her eyes. She admitted she was sleepy. She walked through an area marked "Buses Only" and slipped on a small patch of oil, landing on her left knee, got to her feet and went to the wicket where (she advised) that the floor was slick and that, as a result, she fell. She declined medical attention and walked into the station with her luggage and took the next bus to St. Catharines, as planned."

"It is not in dispute that the plaintiff walked across the bus station floor in an area plainly marked that it was for buses only instead of using the designated walkway . . . She chose to walk across the floor rather than use the walkway, despite clear signage. She admitted on discovery that she was very familiar with the bus terminal and knew where the pedestrian walkway was but did not use it . . . In essence, she chose a short cut across an area where she was not meant to be walking . . . It is not in dispute that, although she followed others, no one fell except the plaintiff . . .".

Note 80: I observe that Schedule "C" of the defendant's "Further and Better Affidavit of Documents", delivered in 2006, does not list the purged documents.

Note 81: At the time, it would have been reasonable for the defendant to have viewed this slip and fall as a minor incident.

Note 82: I would distinguish a "further and better" affidavit of documents from a "supplementary" affidavit of documents in this manner: the former is intended to replace all earlier affidavits; the latter merely supplements, and adds to, previous affidavits. Supplementary affidavits of documents are mentioned in rule 30.07.

Note 83: See the entries in my chronology for May 29, 2007 and

July 13, 2010.
